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Ministry of Information, Communications and the Digital Economy

Draft Final National Data Governance Policy

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Foreword

Kenya's development is increasingly being shaped by the way we generate, manage, share, and use data. In the modern digital economy, data is no longer merely a by-product of transactions or administration; it is a strategic national asset that can strengthen governance, improve service delivery, promote innovation, and accelerate inclusive socio-economic transformation. As Kenya continues to position itself as a leading digital economy in Africa, it is imperative that we establish a coherent and future-oriented framework to govern data in secure, ethical, inclusive, and development-focused manner. The formulation of the National Data Governance Policy is a significant step in this direction. The Policy advances the aspirations of the Constitution of Kenya, Kenya Vision 2030, the Bottom-Up Economic Transformation Agenda, the Digital Economy Blueprint, and the Kenya National Digital Master Plan 2022-2032 by providing a national framework for the responsible stewardship of data as a public and economic resource.

Over the years, Kenya has made important progress in expanding digital infrastructure, increasing digital public services, and establishing the policy, legal and regulatory foundations required for a digital economy. However, the increasing volume, diversity, and strategic importance of data have also exposed longstanding challenges, including fragmented systems, weak interoperability, inconsistent standards, low utilization of data, and inadequate coordination across institutions. These challenges have constrained the country's ability to optimally utilize data for planning, accountability, public service delivery, and innovation.

This Policy provides clear national direction for addressing the aforementioned challenges. It seeks to promote trusted and lawful data sharing, improve data quality and consistency, strengthen institutional efficiency, safeguard rights and privacy, and support evidence-based governance. The Policy also positions Kenya to harness the benefits of emerging technologies, including Artificial Intelligence, Blockchain, and the Internet of Things, in a manner that protects the public interest and advances national development.

The Government remains firmly committed to creating an enabling environment in which data is governed as a strategic national resource for the benefit of all Kenyans. Successful implementation of this Policy will require commitment and cooperation across Ministries, Departments and Agencies, County Governments, the private sector, academia, civil society, and development partners.

I therefore call upon all stakeholders to embrace this Policy and to play their respective roles in its implementation. Through collective effort, we can build a more integrated, secure, and inclusive data ecosystem that enhances public service delivery, support innovation, strengthens public trust, and positions Kenya as a leading digital and knowledge-based economy.

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Cabinet Secretary

Ministry of Information, Communications and the Digital Economy

Preface and Acknowledgement

The National Data Governance Policy has been developed in recognition of the growing importance of data as a foundational resource for public administration, economic growth, citizen-centred service delivery and innovation. As Kenya's digital transformation deepens, the need for a structured, harmonised, and forward-looking framework for the governance of data has become both urgent and necessary.

The Policy responds to persistent challenges that have limited the effective use of data across the public and private sectors in the country. Among the key challenges include fragmented legal and institutional frameworks, inconsistent standards and practices, siloed systems, limited interoperability, inadequate institutional capacity, uneven data stewardship, and low public awareness of data rights and responsibilities. These gaps have reduced the ability of institutions to share and use data effectively, while also constraining the country's capacity to derive full value from data for growth and development.

The Policy is therefore formulated to provide a comprehensive governance framework covering the full data lifecycle, including data generation, collection, storage, processing, access, sharing, analysis, protection, and reuse. It complements existing legal and policy instruments, particularly the Constitution of Kenya, the Data Protection Act, 2019, and related digital governance frameworks, by supporting the effective governance of both personal and non-personal data to promote trust, accountability, transparency, and national value creation.

The policy development process was undertaken through a consultative and multi-stakeholder approach. This included engagements with Ministries, Departments and Agencies, County Governments, private sector actors, academia, civil society, and development partners through town hall consultations, technical working sessions, validation workshops, key informant engagements, and international expert interviews. This approach was intended to ensure that the Policy reflects national priorities, stakeholder perspectives, and practical implementation realities.

The Policy was informed by multiple sources of evidence, including stakeholder submissions, sector reports and studies, administrative data, policy and legal reviews, situational analyses, and regional and global benchmarking. This evidence base guided in identification of priority policy gaps, crafting the proposed interventions, and alignment with emerging continental and global trends in data governance.

The Policy is anchored on key principles that include data sovereignty, a single source of truth for official data, standardisation, interoperability, security, inclusivity, human-centric governance, and responsible innovation. These principles are intended to improve data quality, reduce duplication, strengthen coordination, promote public trust, and support more efficient and evidence-based decision-making across sectors in the country.

To support implementation, the Policy establishes an institutional framework comprising the National Data Governance and Emerging Technologies Council for strategic oversight, the Data Governance Office for implementation coordination, and designated Data Officers across Ministries, Departments and Agencies and County Governments. This implementation framework is intended to strengthen accountability, facilitate secure data sharing, and support a whole-of-government and whole-of-society approach to data governance.

Implementation of the Policy will commence in July 2026 through a phased approach that prioritises capacity building, harmonisation of standards, strengthening of data infrastructure, and establishment of mechanisms for monitoring, reporting, and continuous improvement. Through this approach, the Government seeks to ensure that data is governed not only as a technical resource, but as a strategic national asset for inclusive growth and development.

I wish to thank all the stakeholders who contributed towards the preparation of this Policy. I particularly thank the Cabinet Secretary Hon. William Kabogo for his guidance and support. I also want to thank my colleagues, Principal Secretaries and their teams as well as the multi-stakeholder technical committee for their contributions in reviewing and drafting of the Policy.

Special gratitude is given to the European Union and the German Federal Ministry for Economic Cooperation and Development for their support in the development of this policy, provided through technical assistance delivered by the Deutsche Gesellschaft für Internationale Zusammenarbeit (GIZ) Digital Transformation Center Kenya. This technical assistance was carried out by a team of consultants, whose domain knowledge and expertise in developing this policy are greatly appreciated.

This Policy therefore represents a practical commitment by the Government of Kenya to improve how data is governed, protected, shared, and used. Its successful implementation will contribute to stronger institutions, enhanced public service delivery, and a more coordinated and resilient digital economy for Kenya.

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Principal Secretary

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Table of Contents

Foreword	1
Preface and Acknowledgement	2
Acronyms and Abbreviations	7
1. Introduction	8
1.1 Background	8
1.2 Policy Rationale	9
1.3 Policy Goal and Objectives	10
1.4 Scope of the Policy	10
1.5 Methodology	11
1.6 Structure of the Policy Document	12
2. Contextual Analysis	14
2.1 Overview	14
2.1.1 Institutional Architecture and Coordination Mechanisms	14
2.1.2 Data as Strategic Asset and Economic Resource	15
2.1.3 Data Quality, Standards, and Infrastructure	16
2.1.4 Legal and Regulatory Harmonisation	17
2.1.5 Capacity Building and Data Literacy	17
2.1.6 Rights, Ethics, and Trust	18
2.2 National Data Governance Ecosystem Analysis	19
2.2.1 Core Policy and Legal Instruments	19
2.2.2 Emerging policy and legal frameworks: Virtual Assets, Cloud, and Artificial Intelligence	20
2.2.3 Sectoral Data Governance Frameworks	21
2.2.4 Cross-Cutting Challenges in Kenya's Data Governance Ecosystem	22
2.3 Lessons for Kenya	23
2.3.1 Cross-Cutting Dependencies	24
2.3.2 Foundational Requirements	24
2.3.3 Enabling Infrastructure and Capacity	24
2.3.4 Economic Value Realisation	24
2.3.5 Rights, Trust and Participation	25

2.3.6	Implementation and Adaptation	25
2.4	Stakeholder Mapping	25
2.5	Stakeholder Engagement and Communication	27
2.6	Findings from Primary Data Collection	30
2.6.1	Findings from Key Informant Interviews	30
2.6.2	Findings from Townhalls	32
2.6.3	Findings from Institutional Data Governance Survey	33
2.6.4	Findings from Data Assets Mapping	34
2.6.5	Findings from International Data Governance Experts	35
2.7	Key Lessons from Primary Data Collection	37
2.8	Conclusion	38
3.	Policy Foundation	40
3.1	Vision	40
3.2	Purpose	40
3.3	Data Governance Principles	40
4.	Policy Statements	42
4.1	Data Infrastructure and Technical Governance	42
4.1.1	Policy Gaps	42
4.1.2	Policy Objectives and Interventions	43
4.2	Institutional Coordination and Governance Architecture	44
4.2.1	Policy Gaps	44
4.2.2	Policy Objectives and Interventions	45
4.3	Legal and Regulatory Frameworks	46
4.3.1	Policy Gaps	46
4.3.2	Policy Objectives and Interventions	47
4.4	Emerging Technologies	48
4.4.1	Policy Gaps	48
4.4.2	Policy Objectives and Interventions	49
4.5	Data Culture, Human Capacity and Change Management	50
4.5.1	Policy Gaps	50
4.5.2	Policy Objectives and Interventions	52

4.6	Data Sharing, Exchange and Value Creation	54
4.6.1	Policy Gaps	54
4.6.2	Policy Objectives and Interventions	55
5.	Policy Implementation Framework	58
5.1	Coordination Framework and Administrative Mechanisms	58
5.1.1	National Data Governance & Emerging Technologies (DGET) Council	58
5.1.2	National Multi-Stakeholder Steering Committee	58
5.1.3	National Data Governance Office in the National Government and the CoG	59
5.1.4	Data Offices in MDAs and Counties	59
5.2	Legal and Regulatory Framework	60
5.2.1	Existing Laws Requiring Alignment and Review	60
5.2.2	Laws and Regulatory Frameworks Supporting Implementation	60
5.2.3	Domestication of International Conventions and Treaties	61
5.2.4	The Proposed Data Governance Law	61
5.3	Funding Arrangements	62
5.4	Monitoring, Evaluation and Learning	63
5.5	Risk Analysis and Mitigation	64
5.6	Policy Review Interval	66
	References	67
	Annexes	69
	Annex 1: Definition of Terms	69
	Annex 2: Flow Charts of the Coordination Framework	71
	Annex 3: Policy Implementation Matrix	76
	Annex 4: Policy M&E Matrix	86
	Annex 5: Stakeholder Mapping	96

Acronyms and Abbreviations

AfCFTA	African Continental Free Trade Area
AI	Artificial Intelligence
API	Application Programming Interface
AU	African Union
AUC	African Union Commission
CBPR	Cross Border Privacy Rules
CDO	Chief Data Officer
CSO/CSOs	Civil Society Organization (s)
DAMA-DMBOK	Data Management Body of Knowledge
DCAT	Data Catalogue Vocabulary
DFFT	Data Free Flow with Trust
DGET	Data Governance & Emerging Technologies
DGET Council	National Data Governance & Emerging Technologies Council
DPA	Data Protection Act
DPIA	Data Protection Impact Assessment
FAIR	Findable, Accessible, Interoperable, Reusable
GIZ	Deutsche Gesellschaft für Internationale Zusammenarbeit (GIZ) GmbH
GoK	Government of Kenya
ICT	Information and Communication Technology
ICTA	Information and Communication Technology Authority (Kenya)
IoT	Internet of Things
ISO/IEC	International Organization for Standardization / International Electrotechnical Commission
MCDA	Ministries, Counties, Departments and Agencies
MDM	Master Data Management
MICDE	Ministry of Information, Communications and the Digital Economy
NC4	National Computer and Cybercrime Coordination Committee
NDGP	National Data Governance Policy
ODPC	Office of the Data Protection Commissioner
PPP	Public-Private Partnership
PQC	Post-Quantum Cryptography

1. Introduction

1.1 Background

Kenya has emerged as a continental leader in digital transformation, propelled by its unique socio-economic context and strategic government initiatives. Transitioning toward a knowledge-based economy under the Vision 2030, the country earned the nickname "Silicon Savannah" with Nairobi solidifying its status as a regional tech hub. Extensive investments in digital infrastructure and supportive policies have driven exponential growth in digital access, with mobile penetration reaching 149.4% (78.3 million connections) and internet penetration at 48% as of October - December 2025 period (Communications Authority, 2025).

The foundation for Kenya's digital progress began with the first National ICT Policy in 2006, which spurred development of digital infrastructure. Key initiatives like the National Optic Fibre Backbone (NOFBI) and private investments expanded high-speed internet to underserved regions (ICTA, 2022; MICDE, 2024). Rural electrification initiatives have further enhanced connectivity by powering digital infrastructure in previously underserved areas. Further, Kenya has developed multiple data centers including a national data center (tier 3) to promote data sovereignty (Njogu, 2023).

Digital platforms such as eCitizen have enhanced public service efficiency and accessibility, fueled by affordable smartphones and widespread internet use. This has sparked innovations transforming sectors including the healthcare, education, and agriculture sectors with locally tailored solutions. Among the key government blue prints with commitment in digital economy include the National ICT Policy 2019, Digital Economy Blueprint, National Digital Master Plan 2022-2030, National AI Strategy 2025-2030, and the Kenya Digital Economy Acceleration Project (KDEAP), bolstered by public-private partnerships (Walubengo, 2022; KICTANet, 2024; MICDE, 2023).

The proliferation of sector-specific and government digital services, including eCitizen, has generated massive data volumes across public and private sectors. While powering innovation, efficiency, and growth, this surge exposes systemic risks to long-term sustainability and inclusivity, including urban-rural access disparities, cybersecurity threats, digital literacy gaps, data privacy issues, and algorithmic biases (Okello, 2023; CIPESA, 2025; Masinde et al., 2025).

Although the Data Protection Act of 2019 offers baseline privacy safeguards, the scale and complexity of Kenya's evolving digital ecosystem demand a holistic national data governance policy that extends well beyond personal data protection. Existing legal and institutional frameworks leave significant gaps in the governance of non-personal data, public-interest data sharing, and the data value chain more broadly (CIPIT, 2021). Furthermore, exploitative data sourcing practices, including unconsented web scraping, low-wage data annotation, and the absence of benefit-sharing mechanisms, continue to undermine trust, reinforce inequities, and perpetuate digital colonialism (CIPIT, 2025). A comprehensive national data governance policy must therefore address institutional accountability, cross-border data transfer safeguards, data rights, ethical surveillance guidelines, and community-centred benefit-sharing frameworks, so as to ensure that Kenya's digital transformation yields equitable benefits while safeguarding fundamental rights and national data sovereignty.

The policy's urgency is amplified by data's 5Vs: (i) exploding volume straining storage, retention, and minimization, elevating breach risks; (ii) velocity of real-time analytics

accelerating error-prone decisions; (iii) variety complicating interoperability; (iv) veracity-ensuring quality, provenance, and model integrity for fair service access; and (v) value realized transparently and equitably to prevent further marginalization and sustain public trust.

Policy Rationale

The rationale for the National Data Governance Policy is highlighted below.

Increasing digitalization and data. Kenya has witnessed rapid digital transformation across both public and private sectors in recent years. Public institutions are increasingly leveraging digital platforms to enhance service delivery, citizen engagement, and operational efficiency. This shift has led to an exponential increase in data generation, spanning critical sectors such as health, education, agriculture, civil registration, financial services, and infrastructure. The strategic management of this data is important for enabling data-driven decision making at all levels of government and unlocking the country's potential for digital and AI-powered innovation and economic growth.

Data as a strategic asset. Data serves as a strategic asset driving national digital socio-economic transformation through innovation, inclusive growth, and competitive advantage. Currently, no comprehensive framework exists to govern data as a critical resource for such transformation, limiting its value creation potential. The recognition of data as a national strategic asset would foster a trusted, regulated data market to unlock economic opportunities and societal benefits.

Fragmented data initiatives. Despite numerous efforts to implement data governance frameworks, including the Kenya Open Data Portal, the Open Government Initiative, the Ministry of Agriculture's Data Governance Framework, the Digital Health Act, 2023, and the Health Data Collaborative Roadmap, these initiatives remain fragmented. The inadequate coordination across ministries, departments, and agencies (MDAs) highlights the urgent need for a comprehensive national data governance policy.

Fragmented legal and policy framework. Currently, there is no harmonized policy and legal frameworks to govern data generation, sharing, and utilization across sectors. The absence of such frameworks has impeded effective data management, leading to inefficiencies and missed opportunities in leveraging data for economic growth. A well-structured data governance framework is essential to foster data literacy, trust, and responsible usage. However, its success depends on institutionalized mechanisms, visionary leadership, and harmonized policies. A unified policy would reinforce the recognition of data as a national strategic asset, ensuring improved data quality and interoperability across government entities.

Poor quality data. Data quality challenges undermine effective governance and decision-making across the data lifecycle. Inconsistent definitions and quality controls lead to unreliable data collection, analysis, and utilization, while non-interoperable databases in Ministries, Departments, and Agencies (MDAs) at both national and county level hinder seamless data exchange. This Policy establishes standardized quality frameworks and interoperability protocols to ensure trustworthy data supports national policy decisions and socio-economic outcomes.

Limited awareness, skills and talents. Limited awareness, skills, and talents in data governance hinder national digital advancement. Inadequate expertise in data governance, analytics, and stewardship persists across public and private sectors, while citizens remain

under-informed about their data rights and access mechanisms, deepening digital exclusion. This Policy mandates comprehensive capacity-building programs, public awareness campaigns, and talent development initiatives to empower stakeholders and bridge these gaps.

Institutional framework and capacity. Institutional ambiguities and capacity gaps undermine effective data governance nationwide. Uncertainty over which Ministry or Agency leads data governance oversight and coordination fosters siloed, duplicative data collection across national and subnational levels, wasting public resources. This Policy establishes a clear lead institution with dedicated funding mechanisms and mandates cross-sector collaboration to eliminate redundancies and optimize resource use.

The aforementioned challenges result in duplication of efforts, inefficient decision-making, and delayed progress in achieving national development goals, including transparent governance, efficient service delivery, and inclusive socio-economic growth. These challenges also hinder Kenya from optimally utilizing data as an economic driver and limit the country's readiness to adopt AI and other emerging technologies that could accelerate development outcomes.

A unified national data governance policy is critical to addressing these gaps. By establishing a comprehensive policy framework, Kenya can unlock the full potential of its data ecosystem, driving innovation, economic growth, accountability, and evidence-based policymaking.

1.2 Policy Goal and Objectives

The overall goal of the Data Governance Policy is to harness the potential of data to foster sustainable and equitable socio-economic development for all citizens. The specific objectives include:

- a) Establish clear data management principles and accountability frameworks;
- b) Foster a culture of data-driven decision-making;
- c) Align with best practices for data governance at a regional, continental and global level;
- d) Institutionalize secure and efficient data sharing across ministries, departments, agencies, private sector and other key stakeholders; and
- e) Enhance capacity and awareness of data governance among institutions, citizenry, and other key stakeholders.

1.3 Scope of the Policy

The scope of the National Data Governance Policy includes management of data across all public and private institutions operating in Kenya.. The data governance framework encompasses the policies, standards, and practices that govern how data is collected, managed, shared, protected and used. While this Policy is foremost concerned with the governance of non-personal data, it acknowledges that personal data and its protection fall within the wider data governance ecosystem. It is noted that broader data governance dimensions include data standards, data quality, data value creation, and the governance of non-personal held by data custodians in the civil society, private and public sectors.

The Policy covers the following areas:

- a) **Different types of data:** This includes non-personal data, public and high-risk/sensitive data, digital and non-digital data, structured and unstructured data, and administrative data.
- b) **Whole of data lifecycles:** This covers data collection, categorization, analysis, sharing, use, and impact.
- c) **Different data classifications:** This includes top secret, confidential, restricted, and open.
- d) **Different ecosystems of data use,** including public data ecosystem, private data ecosystem, and cross-border data ecosystem.
- e) **Cross-governmental and cross-sectoral focus:** This includes national and county governments as well as private sector data governance and focusing on priority sectors - Health, finance, education, agriculture, national security, etc. depending on the prioritization of sectors.
- f) **Data required and produced by emerging technologies,** including AI; Blockchain; Big Data; Internet of Things (IOT); Satellite imagery, Earth Observations and Geospatial Systems; and future emerging technologies.

1.4 Methodology

Primary Data Collection

Primary data was collected using three methods. Key Informant Interviews (KIIs) with 16 data management and governance practitioners, including the Office of the Data Protection Commissioner, National Bureau of Statistics, ministry data officials, and data subject matter experts in both public and private sectors, provided in-depth understanding of current data governance practices, insights, implementation challenges and recommendations, and sector-specific requirements. The KIIs were complemented by structured institutional data capacity and governance assessment surveys distributed to various ministries, departments, agencies and counties. The survey tool systematically evaluated governance structures, management practices, security measures, technological infrastructure, human capacity, and data utilisation across Kenyan institutions.

Townhall meetings were held in three regions, with representation from over 12 counties. These meetings brought together county officials charged with data management, civil society organizations, community representatives, informal sector workers, and marginalised groups. The main objectives of the townhall meetings were to demystify the concepts of data governance, data policy, and their implications for citizens' daily lives (e.g. privacy, safety, economic opportunities); to solicit candid feedback, concerns, and suggestions from a cross-section of Kenyans in different regions to directly inform the drafting of the data governance policy; and to ensure inclusivity and ownership. Special attention was made to ensure adequate gender representation that represents meaningful participation through facilitation methods that addressed power imbalances between different stakeholder categories. The facilitation also ensured that the technical stakeholders and community representatives informed each other's perspectives, creating opportunities for dialogue between data governance practitioners and the communities whose data and rights are at stake.

Documents Review and Benchmarking

Relevant data governance policy, legal, strategy and standards documents were reviewed from countries across the globe. These included countries in Africa (AU, Benin, Gambia, Rwanda,

South Africa), Europe (EU, UK, Germany, Netherlands), North America (USA), Asia (Japan), Oceania (New Zealand) and other parts of the world. In addition, online engagements were held with experts from EU, Germany, China and USA. The main purpose of the document reviews and engagements with data experts with the four regions was to benchmark and draw lessons for Kenya on the data governance instruments and institutional frameworks in the various jurisdictions.

Stakeholder Engagement

Primary data collection was one of the mechanisms of engaging stakeholders. Stakeholders were also engaged in an inception workshop attended by over 200 stakeholders, a workshop to discuss and agree on the policy gaps that emerged from the data analyses, and multiple validation workshops.

Policy Drafting

The qualitative data collected through document reviews, interviews, regional townhall meetings and data expert focus group discussions were analysed using qualitative analytical techniques. The data governance survey evaluated data governance maturity, resources and budget allocation, policies and compliance, digital infrastructure and capabilities, skills and capacity availability, challenges and improvement priorities, AI and emerging technologies readiness, and national data governance policy priorities and recommendations. The results were analysed through thematic analysis using statistical tools. This analysis produced policy themes for developing the key policy data governance goals and interventions to address gaps. Further, the structure and drafting of the policy were guided by the Public Policy Handbook for Kenya (2024).

Policy Validation

Five stakeholder validation workshops were held. One was a general one with participants drawn from public sector, private sector, academia, and civil society. The rest of validation workshops were held: one with private sector participants, a second one with ministries and selected county government participants, a third with public sector agency participants, and a fourth one with civil society participants. Members of academia, persons with disabilities, and the youth were invited to the general and the civil society workshops. Members of the public were invited to give comments on the draft final Data Governance Policy hosted at the Ministry of Information, Communications and the Digital Economy as a final policy validation mechanism.

1.5 Structure of the Policy Document

Chapter One has introduced the National Data Governance Policy, covering its background, rationale, overall goal, specific objectives, scope, and development methodology. The next chapter analyzes global, regional, and national data governance frameworks, extracting key lessons for Kenya's framework and mapping key stakeholders. Chapter Three establishes the policy's foundation through its vision, purpose, and guiding principles.

Chapter four forms the policy's core, identifying gaps across six key themes and outlining objectives and interventions to address them. The final chapter details implementation frameworks, including institutional framework for coordination and administration, legal and

regulatory framework, funding arrangements, monitoring, evaluation, and learning (MEL), risk analysis and mitigation, and policy review intervals. Key annexes include the implementation matrix and monitoring and evaluation matrix.

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2. Contextual Analysis

2.1 Overview

The rapid digital transformation in Africa underscores data's role as a strategic asset for growth and public service innovation. Robust policy frameworks are required to build public trust and legitimacy in data management, yet the continent faces a fragmented landscape of digital readiness (Klatte et al., 2025; Signé & Rukundo, 2020). Global trends are shifting from purely privacy-centric models toward integrated approaches that balance fundamental rights with the imperative to derive economic value. Regional policy instruments like the AU Data Policy Framework seek to foster digital trust and cross-border data flows to create a single digital market.

This chapter provides a comprehensive mapping and analysis of data governance frameworks across global, regional, and national levels to inform Kenya's National Data Governance Policy. The analysis is structured around six emerging themes that cut across jurisdictions and reveal fundamental patterns in data governance approaches worldwide. Understanding the global, regional, and national data landscape creates the foundational basis through which policy interventions can be clearly structured and gaps identified to develop a harmonized and evidence-based policy framework.

2.1.1 Institutional Architecture and Coordination Mechanisms

Global Models of Governance Structures

Advanced economies utilize multi-tiered institutional structures to coordinate data efforts across sectors as summarised in Box 2.1.

Box 2.1: Global Models of Governance Structures

- The African Union employs a layered architecture including the AU Commission and Regional Economic Communities to drive harmonization.
- The European Union's model features the European Data Innovation Board, ensuring representation across regulatory, technical, and policy dimensions.
- In the United States, a networked approach utilizes the Federal Chief Data Officer Council to bridge agency-level silos.
- India distinguishes policy development from adjudication via the India Data Management Office and the Data Protection Board, supported by Consent Managers for user control.
- Saudi Arabia's centralised approach establishes the Saudi Data and AI Authority (SDAIA) as the single apex body overseeing both data governance and artificial intelligence, integrating policy formulation, regulatory oversight, and national data infrastructure under unified leadership.
- Germany embeds data labs within federal ministries to maintain domain expertise.
- The UK uses the Data Standards Authority for government-wide standards.
- South Africa emphasizes multi-stakeholder participation through an Advisory Council with public and private representation.

In addition, the UNESCO Data Governance Toolkit: Navigating Data in the Digital Age (2025), developed through the Broadband Commission Working Group co-chaired by UNESCO, ITU, UNDP, and the African Union Commission (Verhulst & Verdadero, 2025), offers a globally endorsed structural model for national data governance frameworks. The Toolkit organises governance design around four interdependent components referred to as the 4P Framework: Why (defining the vision and purpose of data governance); How (articulating guiding principles); Who (establishing institutional roles, responsibilities, and processes); and What (specifying the policies, practices, and technologies governing each stage of the data lifecycle). This framework treats governance not merely as a compliance function but as a rights-centred, purpose-driven system designed to increase trust, value, and equity while minimising risk and harm.

Regional Coordination

There are various regional coordination policy frameworks shaping data governance. Notably, the AU Data Policy Framework views continental coordination as critical, yet heterogeneous digital maturity across 55 states complicates unification. In addition, institutional structures for e-governance remain weak, often lacking enforcement power. The Malabo Convention (Data Protection and Cyber Security) took nine years to enter into force, reflecting capacity constraints and limited political prioritization. At the sub-regional level, the EAC Common Market Protocol lacks specific data governance provisions, deferring to fragmented national laws. The 2024 EAC Data Governance Policy Framework notes that policy development has frequently outpaced the institutional capacity for execution.

2.1.2 Data as Strategic Asset and Economic Resource

Global Approaches to Data Valuation

Global frameworks increasingly treat data as a fundamental factor of production. For instance, China designates data alongside labor and capital, emphasizing the state's role in preventing monopolistic control while enabling data trading. India shifted its focus from direct monetization to treating non-personal data as a public resource for innovation following concerns about technology giant dominance. Rwanda positions data as a "natural resource" driving national competitiveness, while South Africa adopts a cloud-first approach for infrastructure flexibility. Further, the EU balances market development with data altruism and common sectoral data spaces. The UK and Germany frame data as a driving force for productivity, viewing governance as an enabler for growth rather than a mere constraint.

Regional Economic Integration

The Africa Continental Free Trade Agreement (AfCFTA) Digital Trade Protocol (2023) mandates harmonized rules to enable frictionless cross-border data flows. The Protocol facilitates businesses without local data centres to access markets while encouraging development of local digital infrastructure to build African capacity. The AU Data Policy Framework links data governance directly to economic outcomes, focusing on five pillars: governance, infrastructure, literacy, security, and trade logistics.

2.1.3 Data Quality, Standards, and Infrastructure

Global Standards and Quality Frameworks

The FAIR principles (Findable, Accessible, Interoperable, Reusable) have become a global consensus for data management. The US Federal Data Strategy emphasizes master data management to ensure reference data consistency across agencies. Japan's e-Government strategy advances a "government-as-a-platform" model to provide shared services like unified payments and authentication. Rather than each agency building separate infrastructure, platform approaches enable investment in high-quality shared services that all government entities can leverage. The Open Government Partnership promotes data standards alongside open data commitments and advocates for machine-readable formats to transform static transparency into dynamic data use. The UK National Data Strategy prioritizes mission-critical data infrastructure, recognizing that economic and administrative functions depend on foundational data systems. The UK also focuses on skills and culture, recognizing that technical infrastructure alone is insufficient without data literate professionals who can effectively utilize data in decision-making.

International standards organisations provide critical benchmarks for data governance that complement broad principles like FAIR. ISO 8000 establishes requirements for data quality covering accuracy, completeness, consistency, and timeliness along with standardised metrics and certification processes for master and transactional data. ISO/IEC 27001 is a leading international framework for information security management systems, specifying a systematic approach to protecting sensitive data through risk assessment, security controls, and continuous monitoring, particularly relevant where cybersecurity integration with sector-specific data governance remains incomplete. ISO/IEC 38505, part of the broader ISO 38500 IT governance family, provides a dedicated governance model for data as a strategic asset, distinguishing governance from management and establishing evaluate-direct-monitor responsibilities for governing bodies. Together, these standards offer Kenya internationally validated frameworks for data quality assurance, information security, and institutional accountability that can anchor technical standards development and bridge the gap between policy ambition and operational implementation.

Digital Infrastructure and Interoperability

Some of key global digital infrastructure for data governance include Estonia's X-Road that enables secure data sharing across systems, auditable data exchange, providing the foundation for seamless digital prescriptions and e-residency. The India Stack provides a comprehensive platform approach, linking biometric ID (Aadhaar), digital payments, and document storage. Germany invests in sector-specific data spaces to ensure digital sovereignty while facilitating controlled data sharing within defined communities, balancing openness with control. These sector-specific data spaces recognize that different domains have distinct data governance needs and trust requirements. South Africa utilizes cloud-first approach across agencies to increase resilience and cost efficiencies, though it requires careful management of vendor lock-in and sovereignty. South Africa's data localization framework emphasizes the need for data localization considerations, secure configurations, and contractual protections to ensure cloud adoption enhances rather than compromises data governance.

2.1.4 Legal and Regulatory Harmonisation

Global Regulatory Convergence

The EU GDPR has emerged as a global benchmark influencing data protection legislation through its comprehensive approach to rights, obligations, and enforcement. However, its prescriptive nature poses operational costs for smaller organizations. In the US, data protection is fragmented across sectoral federal laws and emerging state-level acts like the California Consumer Privacy Act (CCPA). China's Personal Information Protection Law (PIPL) and Japan's Act on the Protection of Personal Information reflect efforts in the Asia-Pacific to balance innovation with protection.

The APEC Cross-Border Privacy Rules (CBPR) system represents an alternative to EU approaches, focusing on accountability-based enforcement through certification and dispute resolution rather than prescriptive rules. CBPR enables data transfers between participating economies based on privacy program certification against APEC Privacy Framework principles. This approach accommodates differences in legal systems and enforcement capacity, though critics contend it provides weaker protections than GDPR. Emerging frameworks in countries like South Korea, Singapore, and Thailand demonstrate continued regional evolution of data protection with increasing alignment on core principles while maintaining contextual variation.

Regional policy and legal frameworks

There are several regional policy and legal frameworks on data governance. Notably, the AU Data Policy Framework prioritizes people-centered foundational values but remains non-binding. The Malabo Convention is the primary binding instrument, establishing independent National Data Protection Authorities, yet fewer than half of member states have ratified it as of 2025. The African Continental Free Trade Area's Digital Trade Protocol (AfCFTA Digital Trade Protocol) balances trade facilitation with sovereignty.

At the sub-regional level, the East African Community Data Governance Policy Framework seeks harmonization across partner states Kenya, Uganda, Tanzania, Rwanda, Burundi, South Sudan, and Democratic Republic of Congo. The framework addresses gaps identified in the EAC Common Market Protocol, which lacks specific data governance provisions. However, the EAC framework itself is not directly binding and must be translated into national legislation or regulations, creating implementation gaps. Partner states have varying data protection regimes with different requirements, enforcement mechanisms, and institutional capacity, limiting practical interoperability even where policy convergence exists. While the Framework envisions that the Data Protection Office would take over overall Data Governance this view does not consider capacity and resource constraints that exist across East Africa and fundamentally does not take into account the independence required of the Data Protection Commissioner who would be constrained to also delve into the arena of developing sectors that they ought to then regulate.

2.1.5 Capacity Building and Data Literacy

Global Capacity Building Models

Effective governance requires a data-aware public and skilled professionals across legal, policy, and technical domains. The UK prioritizes skills and culture as essential infrastructure. India provides comprehensive training for government officials, while the US uses its CDO Council (a forum for the Federal Chief Data Officers (CDOs)) to achieve economies of scale in training materials. Germany and the Netherlands emphasize cultural transformation to build public trust. Japan utilizes digital literacy programs to prevent a digital divide in public service access. The UNESCO Data Governance Toolkit (2025) provides a multilateral capacity-building model specifically designed for policymakers in developing countries. Developed through consultations with over 200 stakeholders from 56 countries across Africa, the Arab States, Latin America, and Southeast Asia, the Toolkit includes a self-assessment framework, curated resources, and training materials to help governments evaluate their governance maturity and identify priority gaps.

Organizational and Institutional Capacity

Mature organizations define formal roles such as Chief Data Officers and Data Stewards to ensure accountability. Change management is required to overcome cultural resistance and informal management practices. Maturity models allow organizations to assess their leadership, quality, and security against standard benchmarks.

2.1.6 Rights, Ethics, and Trust

Global Rights Frameworks

The EU views privacy as a fundamental right that cannot be traded for economic gain, mandating transparency and human oversight for high-risk AI. India's Data Empowerment and Protection Architecture (DEPA) implements privacy by design through a technical architecture that provides individuals auditable control over data sharing.

The United States approach to data rights remains fragmented across sectoral laws and increasingly across state laws. The Health Insurance Portability and Accountability Act (HIPAA) provides robust protections for health information, including rights to access medical records and restrictions on use and disclosure. The Family Educational Rights and Privacy Act protects student records, The Gramm-Leach-Bliley Act addresses financial information. Children's Online Privacy Protection Act creates enhanced protections for minors. However, this sectoral approach leaves significant gaps where no comprehensive protections apply, and varying state laws create complexity for organizations operating nationally.

Countries emphasizing transparency and trust-building as foundations for data governance include Germany, which advances trust-based frameworks balancing competition, innovation, personalization, and privacy in what it characterizes as wise management of inherent trade-offs. The Netherlands emphasizes service-oriented and transparent public sector approaches that empower citizens with data access and control. New Zealand utilizes co-design to ensure data systems are built with public engagement.

Regional Rights and Ethics Emphasis

Regional frameworks are beginning to focus on rights and ethics as well as addressing collective data governance for traditional knowledge protection. The AU Data Policy Framework emphasizes fairness and inclusiveness, addressing the unique cultural and

communal contexts of Africa. The Malabo Convention creates data subject rights including access to information about processing; rights to object; rights to rectification of inaccurate data; and rights to erasure in certain circumstances. The AfCFTA Digital Trade Protocol balances digital commerce facilitation with personal data protection, mandating that member states establish legal frameworks for personal data protection aligned with international principles. Kenya's Protection of Traditional Knowledge Act reflects this effort, though implementation questions persist about how communal governance interfaces with individual data protection frameworks, particularly when traditional knowledge is expressed in digital forms that may involve personal data of knowledge holders.

2.2 National Data Governance Ecosystem Analysis

Kenya's digital landscape is significantly driven by data, and various data governance initiatives designed to enforce standards in data protection, enhance data flows and sharing, improve data coherence, and enable comprehensive analysis by integrating diverse data sources. However, analysis of these initiatives reveals critical gaps between policy articulation and practical implementation, fragmentation across multiple instruments, and challenges in enforcement capacity.

2.2.1 Core Policy and Legal Instruments

The National Digital Masterplan 2022-2032

The National Digital Masterplan guides Kenya's digital transformation by expanding connectivity, strengthening data protection, developing digital infrastructure, integrating information systems, and boosting digital literacy-all to support the Vision 2030 economic goals. While it treats data protection as an important compliance requirement, it lacks comprehensive governance frameworks for non-personal data and does not position data as a strategic economic asset needing dedicated policies beyond privacy safeguards. This creates an imbalance: policy emphasis remains on restricting data use for privacy protection, while frameworks to enable beneficial data use for innovation and economic value remain underdeveloped.

The Data Protection Act 2019 and Supporting Regulations

This Act implements constitutional privacy rights through regulations for civil registration, complaints handling, registration and General Regulations. It includes data localization principles for sensitive information. Key challenges affecting the implementation of this Act limited public awareness on personal data and resource constraints at the Office of the Data Protection Commissioner (ODPC).

Computer Misuse and Cybercrimes Act and National Cyber Security Strategy 2022-2027

Enactment of Computer Misuse and Cybercrimes Act and formulation of National Cyber Security Strategy 2022-2027 are some of the key initiatives for securing the data ecosystem. Notably, the Computer Misuse and Cybercrimes Act establishes the coordinating body - National Computer and Cybercrimes Coordination Committee (NC4). The recent amendment in 2024 reflects Kenya's continuing tension between cybersecurity needs, law enforcement demands, and protection of fundamental rights in its data governance framework. The National

Cybersecurity Strategy provides a road map for implementation of key cybersecurity initiatives for 2022-2027 period.

Access to Information and Traditional Knowledge Protection

The Access to Information Act of 2016 gives effect to Article 35's right to information by mandating disclosure from public and private entities. It clashes with privacy rights when personal data is requested, and the absence of clear priority or conflict-resolution rules between this Act and the Data Protection Act leaves organizations uncertain which duty prevails.

Protection of Traditional Knowledge and Cultural Expressions Act of 2016 mainly uses intellectual property tools to disallow unauthorised commercial exploitation of traditional knowledge and cultural expressions. This presents critical data governance policy issues (including custodianship, access rights, community consent, and benefit-sharing) when such knowledge is digitised, stored in databases, or used for research or commercial ends.

2.2.2 Emerging policy and legal frameworks: Virtual Assets, Cloud, and Artificial Intelligence

The Virtual Asset Service Providers Act 2025

The Act provides a framework for regulation of virtual asset service providers, making compliance with the Data Protection Act mandatory before license issuance. The Act establishes specific data processing requirements for entities operating in the virtual asset space, recognizing the significant personal and financial data involved in cryptocurrency and blockchain-based services. This represents an evolution toward technology-specific regulation addressing unique risks and characteristics of emerging technologies.

Kenya's Cloud Policy

The policy sets guidelines for cloud adoption in government and private sectors, covering data sovereignty, security standards, service level agreements, and vendor selection. While it offers strategic direction, the publicly available document is brief and leaves key implementation details (such as technical standards, compliance verification, and enforcement) to future guidelines.

Kenya's limited local cloud infrastructure forces continued reliance on foreign providers, raising risks of foreign jurisdiction over sensitive data and potential access by foreign governments. Persistent technical capacity gaps in cloud security, configuration, and incident response hinder secure management across institutions. Success hinges on detailed implementation guidance, capacity building, investment in domestic cloud infrastructure, and strong oversight to enforce data protection and security compliance.

Kenya's National AI Strategy

The Strategy outlines a comprehensive vision and roadmap for Kenya's AI ecosystem, covering governance, innovation, capacity building, and ethics. It is noted that successful transition from strategy to policy, legislation, and implementation demands sustained political will, sufficient funding, systematic capacity development across sectors, inclusive stakeholder engagement, and careful sequencing of interventions. Kenya's data protection experience-strong legislation

undermined by weak implementation capacity-provides cautionary lessons: AI governance must be supported by robust enforcement, resources, and public awareness to avoid remaining merely aspirational.

2.2.3 Sectoral Data Governance Frameworks

Kenya has adopted a sectoral approach to data governance, applying Data Protection Act 2019 principles through domain-specific frameworks. This enables tailored regulation but risks fragmentation, inconsistent standards across sectors, and compliance complexity for multi-sector organisations.

Agricultural Sector

The Ministry of Agriculture's Data Governance Framework governs farmers' data to support digital transformation and evidence-based decisions, incorporating consent, data subject rights, and privacy-by-design. Challenges include low digital literacy among smallholders hindering informed consent, power imbalances with "agtech" companies, and lack of data marketplaces enabling farmers to monetise their data while retaining control. The Draft Kenya Agricultural Data, Information and Digital Policy (March 2026) from the Ministry of Agriculture and Livestock Development proposes the establishment of the Kenya Agricultural Digital Information Centre (KADIC) and builds on the KIAMIS farmer registry to coordinate digital agriculture, data governance, and information management across the sector. The draft adopts FAIR principles, references the Data Protection Act 2019, and emphasises interoperability and devolved implementation, all broadly consistent with the NDGP. However, it designs its data infrastructure independently of the national architecture contemplated under the NDGP, does not address data ownership, community data governance, or cross-border data flows, and will require explicit alignment with the NDGP's infrastructure and governance framework to avoid establishing a parallel system.

Education Sector

ODPC guidance for education outlines obligations for processing sensitive student data (academic, health, financial, disciplinary) and sets strict standards for e-learning platforms, especially children's data. Institutions face budget constraints, technical capacity gaps for security, and difficulties obtaining meaningful consent from minors while balancing parental involvement and children's evolving autonomy.

Media and Communications Sectors

Media: The Data Governance Guide for Media Practice balances privacy with freedom of expression/media through principles of data minimisation, purpose limitation, and source protection. Tensions persist between public interest journalism and privacy, and between source confidentiality and disclosure/retention obligations.

Communications: Guidance sets minimum standards for telecoms/ISPs handling subscriber, traffic, location, and financial data, including safeguards for lawful interception. Concerns remain over inadequate oversight, transparency, and risk of surveillance abuse.

Digital Credit Providers

ODPC guidance requires DCPs to comply with the Data Protection Act, addressing risks in automated credit scoring, use of mobile data (call logs, messages, contacts), and sharing with credit bureaus. Providers must secure explicit consent, disclose scoring methods, and protect financial data. Enforcement remains weak, with ongoing violations and low consumer awareness of rights.

Health Sector

The health sector presents the most developed yet complex data governance landscape in Kenya, reflecting the sensitive nature of health information and its critical importance for healthcare delivery, research, and public health functions. Health data governance operates through multiple overlapping and sometimes conflicting instruments creating both opportunities for comprehensive protection and risks of fragmentation.

Digital Health Act 2023. This act positions health information as a national asset; establishes the Digital Health Agency to coordinate governance, interoperability, and unified health information systems. Key elements include data stewardship, mandatory interoperability standards, patient rights to access/correction, provisions for research/secondary use, and robust security/breach notification requirements.

ODPC Health Data Processing Guidance. This guidance provides operational detail on consent (implied for treatment, explicit for secondary uses), role-based access controls, data sharing agreements, and regulation of digital health apps/telemedicine/wearables.

Draft National Health Data Dictionary Governance Framework. This framework focuses on standardised terminologies/coding, data quality standards, the Master Health Facility Registry, and comprehensive metadata to improve usability, integrity, and interoperability.

Health Sector Data Governance Challenges. The following are the challenges with the health sector data governance:

- Implementation capacity gaps in counties (limited resources, skills, infrastructure)
- Persistent fragmentation of health information systems despite interoperability mandates
- Inadequate security and confidentiality risks, including breaches
- Difficulties obtaining meaningful consent in emergencies, low literacy, and power imbalances
- Underdeveloped frameworks for research, secondary use, and ethical waivers
- Risks from unregulated commercial health technologies (telemedicine, apps)
- Unclear governance of cross-border health data flows amid data localisation rules

2.2.4 Cross-Cutting Challenges in Kenya's Data Governance Ecosystem

Several challenges span sectoral frameworks and undermine their overall effectiveness:

Legal Fragmentation and Conflicts

The absence of comprehensive umbrella data governance legislation leads to the proliferation of sector-specific rules, creating fragmentation and potential contradictions. Inconsistent requirements across sectors increase compliance complexity for multi-sector organisations,

while lack of clear hierarchies or conflict-resolution mechanisms leaves uncertainty about which rules prevail.

Implementation and Enforcement Capacity

Sectoral frameworks impose detailed, resource-intensive obligations that are particularly difficult for smaller entities to meet. The Office of the Data Protection Commissioner is constrained by limited resources, restricting effective oversight. Many organisations have inadequate budgets for compliance investments (security systems, training, dedicated DPOs), resulting in frameworks that exist mainly on paper with limited real-world protection.

Balancing Competing Rights

Data governance frameworks frequently must reconcile competing constitutional rights, such as privacy versus freedom of expression/media (media sector), transparency versus privacy (Access to Information Act), or patient confidentiality versus public health needs (health sector). These tensions demand nuanced balancing tests, clear criteria, and independent oversight—elements that remain underdeveloped.

Cybersecurity Integration

While the National Cyber Security Strategy and Computer Misuse Act set broad requirements, integration with sector-specific data governance is incomplete. Many frameworks mention security but lack detailed technical standards, guidance, or audit mechanisms for data. Gaps in infrastructure, cybersecurity expertise, and consistent implementation leave critical and sensitive data vulnerable to breaches.

Public Awareness and Data Literacy

Low public understanding of data rights and limited data literacy across society hampers effectiveness. Citizens cannot exercise unknown rights, and organisations struggle to comply with misunderstood obligations. There is a need for sustained, multi-channel public education campaigns, targeted organisational capacity building, and integration of data literacy into education, none of which have been systematically implemented.

Resource Constraints

Effective data governance requires substantial investment in systems, skilled personnel, training, and oversight. Severe resource limitations in public institutions turn ambitious frameworks into unfunded mandates, reducing compliance capacity, legitimacy, and overall impact.

Addressing these challenges requires: comprehensive umbrella legislation with clear hierarchies and conflict resolution; adequate resource allocation for implementation and enforcement; systematic capacity building across sectors; sustained public awareness initiatives; and adaptive frameworks that evolve with technology and implementation experience.

2.3 Lessons for Kenya

2.3.1 Cross-Cutting Dependencies

Kenya's National Data Governance Policy must address six interdependent themes holistically:

- Strong institutional coordination is foundational. Without it, all other areas (data quality, legal coherence, economic value, rights protection) suffer.
- Data quality, standards, and interoperable infrastructure are prerequisites for realizing data's economic value.
- Legal harmonization is essential for domestic coherence and regional integration.
- Widespread capacity building across government, private sector, and society is the critical constraint on success and must run parallel to policy development and implementation.
- Robust rights protection and trust are enablers of necessary data sharing for innovation, governance, and service delivery.
- Digital infrastructure (interoperability platforms, digital identity, metadata registries) underpins progress across every theme.

2.3.2 Foundational Requirements

Among the foundational requirements for the data governance include:

- Establish a high-level National Data Governance & Emerging Technologies Council with cross-sectoral representation, clear mandate, resources, and authority to coordinate policy, resolve disputes, and monitor progress.
- Develop comprehensive technical standards based on FAIR principles (Findable, Accessible, Interoperable, Reusable), including government-wide data architecture, metadata, quality metrics, master data management, and interoperability protocols.
- Enact umbrella Data Governance legislation to harmonize fragmented instruments, resolve conflicts (e.g Statistics Act vs Data Protection Act), define institutional roles, data sharing rules, cross-border transfers, and sector applications while aligning with AU and regional frameworks.

2.3.3 Enabling Infrastructure and Capacity

Key enabling digital infrastructure and capacity for data governance include:

- Create a national certification framework for data governance professionals with progressive levels, drawing on international models.
- Deliver multi-audience training programmes (public sector, private sector, civil society) and sustained, multilingual public awareness campaigns.
- Build an integrated "Kenya Stack" digital infrastructure inspired by India Stack and X-Road, including secure data exchange layer, digital identity, authoritative registers, metadata catalogue, consent management, and digital payments with security and auditability by design.

2.3.4 Economic Value Realisation

Effective data governance requires:

- Formally recognise data as a factor of production in economic planning, budgeting, and national development strategies.

- Establish regulated, trustworthy data marketplaces with clear governance to facilitate exchange, ensure quality, protect rights, and enable fair value distribution (especially in agriculture and cross-sectoral uses).
- Develop AfCFTA-aligned cross-border data flow frameworks (adequacy decisions, standard clauses, mutual recognition) to support regional digital trade while safeguarding sovereignty.

2.3.5 Rights, Trust and Participation

Key requirements on rights, trust and participation in data governance include:

- Implement granular, revocable, auditable consent architecture (inspired by India's DEPA model) for meaningful individual control.
- Ensure linguistic and cultural accessibility of all data governance materials in Kiswahili, English, and major regional languages, with accessible formats.
- Provide targeted protections for vulnerable groups (children, indigenous communities, persons with disabilities, economically disadvantaged).
- Mandate Algorithmic Impact Assessments and enhanced oversight for high-risk AI/automated systems.
- Establish clear guidelines, impact assessments, and independent oversight for surveillance technologies and biometrics.
- Institutionalise meaningful, inclusive public participation processes in policy development.
- Launch sustained, multi-channel public awareness campaigns to build data rights knowledge, security practices, and trust.

2.3.6 Implementation and Adaptation

Effective implementation and adaptation of data governance call for:

- Adopt principles-based, flexible frameworks with regulatory sandboxes, innovation hubs, and agile updates to accommodate emerging technologies.
- Implement a phased approach: foundation (Council, legislation, basic infrastructure, awareness); expansion (certification, deeper infrastructure, enforcement); maturation (optimisation, regional leadership).
- Mandate regular (e.g. every 3 years) policy reviews with stakeholder input, evidence collection, international benchmarking, and transparent iterative improvements.

2.4 Stakeholder Mapping

A mapping of stakeholder groups on an interest/influence grid is shown in Figure 2.1. A summary of the detailed stakeholder mapping is provided in table 2.1.

Figure 2.1: Stakeholder mapping

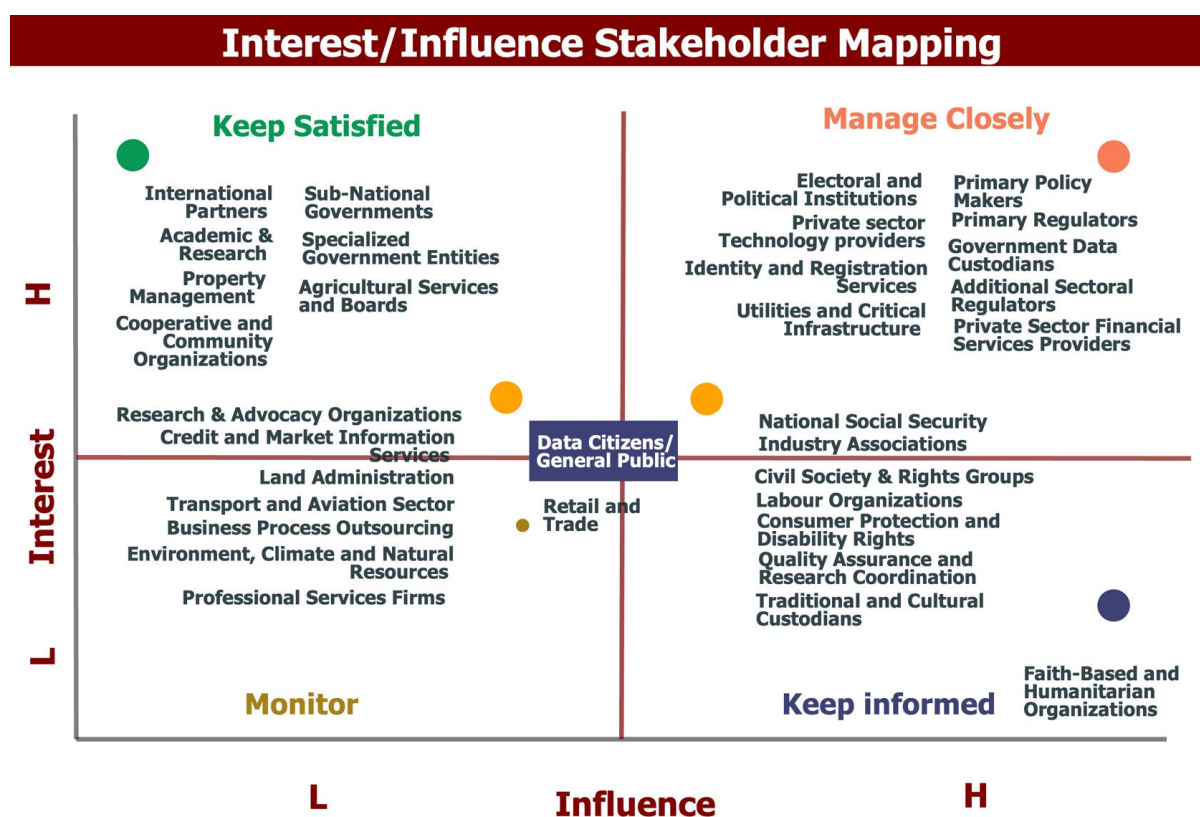


Table 2.1: Summary stakeholder mapping

Stakeholder Group	Interest	Influence	Quadrant	Engagement Strategy
Primary Policy Makers	High	High	Manage Closely	Early and continuous engagement; ministerial briefings; technical committees
Primary Regulators	High	High	Manage Closely	Regulatory roundtables; joint enforcement planning; MOUs
Government Data Custodians	High	High	Manage Closely	Sectoral working groups; data governance workshops; compliance training
Sub-National Government	High	Low	Keep Informed	Official communications; capacity building; community outreach
Private Sector Technology Providers	High	High	Manage Closely	Industry consultation forums; PPP dialogues; innovation summits
Private Sector Financial Services	High	High	Manage Closely	Financial sector forums; fintech roundtables; CBK coordination
Electoral & Political Institutions	High	High	Manage Closely	IEBC consultations; electoral integrity forums
Additional Sectoral Regulators	High	High	Manage Closely	Inter-regulatory coordination; compliance workshops
Utilities & Critical Infrastructure	High	High	Manage Closely	Critical infrastructure forums; cybersecurity working groups

Stakeholder Group	Interest	Influence	Quadrant	Engagement Strategy
Identity & Registration Services	High	High	Manage Closely	Identity management forums; IPRS coordination
Credit & Market Information Services	High	High	Manage Closely	Financial data governance forums; consumer credit dialogues
Land Administration	High	High	Manage Closely	Land data governance forums; spatial data coordination
Industry Associations	High	Medium	Keep Informed & Involve	Multi-stakeholder forums; industry roundtables
Civil Society & Rights Groups	High	Medium	Keep Informed & Involve	Public policy hearings; rights-based dialogues; social media
Labour Organizations	High	Medium	Keep Informed & Involve	Worker rights dialogues; collective bargaining consultations
Traditional & Cultural Custodians	High	Medium	Keep Informed & Involve	Community dialogues; indigenous data sovereignty forums
Research & Advocacy Organizations	High	Medium	Keep Informed & Involve	Academic policy dialogues; evidence synthesis workshops
Academic & Research Institutions	High	Low	Keep Informed	Research partnerships; capacity building; university forums
International Partners	High	Low	Keep Informed	Technical cooperation; best practices sharing; funding alignment
Cooperative & Community Organizations	High	Low	Keep Informed	Community outreach; grassroots mobilization programmes
Faith-Based & Humanitarian Organizations	Low	High	Keep Satisfied	Periodic ethical data use consultations; community trust building
Data Citizens / General Public	Medium	Medium	Monitor & Engage	Public awareness campaigns; town halls; social media; SMS alerts

Note: The full detailed stakeholder mapping including example entities, datasets, and nature of interest and influence is provided in Annex 5.

2.5 Stakeholder Engagement and Communication

Table 2.2 provides a framework for stakeholder engagement and communication based on the stakeholder mapping in section 2.5. The focus is on stakeholders with high interest and high influence.

Table 2.2: Stakeholder engagement strategy

Stakeholder Groups	Why do we engage?	When do we engage?	What communication tools do we use to engage?
Primary Policy Makers	- Secure Cabinet approval and legislative backing - Obtain budget allocation for policy implementation - Align data governance policy with national digital transformation agenda - Ensure political will and champion support	- Early policy conceptualization and drafting - Cabinet memo submission and approval - Budget preparation and allocation cycles - Parliamentary debate and enactment	- Cabinet memos and technical briefs - One-on-one ministerial briefings - Interministerial technical committees - Parliamentary committee presentations - National Assembly sessions - Official government communication

Stakeholder Groups	Why do we engage?	When do we engage?	What communication tools do we use to engage?
		Post-approval implementation oversight	
Primary Regulators	- Establish regulatory compliance framework - Define enforcement mechanisms and penalties - Ensure coordinated oversight across sectors - Clarify regulatory roles and prevent jurisdictional conflicts	- Early policy conceptualization and drafting - Regulatory framework design phase - Enforcement mechanism development - Inter-regulatory coordination planning - Compliance standard setting - Dispute resolution framework design	- Regulatory roundtables - Technical working groups - Joint enforcement planning sessions - Memoranda of Understanding (MOUs) - Regulatory compliance workshops - Official Gazette
Government Data Custodians	- Secure commitment to data quality standards - Ensure buy-in for interoperability requirements - Define data ownership and stewardship roles - Establish sectoral compliance timelines	- Early policy conceptualization and drafting - Data standards consultation and development - Data architecture and Enterprise system interoperability design - Roles and responsibilities definition - Sectoral implementation planning - Data governance audit preparation	- Sectoral technical working groups - Data governance workshops - Interoperability planning sessions - Compliance training programs - Official government communications
Private Sector Technology Providers	- Ensure regulatory clarity for technology innovation - Address cross-border data flow requirements - Establish AI and data governance frameworks - Balance innovation with data protection - Secure industry compliance commitment	- Early policy conceptualization - Technology standards development - AI data governance policy formulation - Cross-border data transfer framework design - Platform regulation consultations - Innovation sandbox establishment	- Industry consultation forums - Public-private partnership dialogues - Technology policy roundtables - Innovation summits - Regulatory sandbox sessions - Position paper submissions and responses
Private Sector Financial Services Providers	- Align financial data security standards - Enable fintech innovation within governance framework - Ensure payment systems data governance - Secure banking sector compliance	- Early policy conceptualization - Financial sector and fintech policy and regulation alignment - Payment systems governance framework design - Customer data protection standard setting	- Financial sector forums - Kenya Bankers Association engagements - Fintech roundtables - Regulator/Central Bank coordination meetings - Compliance implementation workshops

Stakeholder Groups	Why do we engage?	When do we engage?	What communication tools do we use to engage?
Electoral and Political Institutions	• Protect electoral data integrity • Ensure voter data privacy and security • Establish political party data governance standards • Safeguard democratic processes	• Electoral data governance framework design • Voter registration system reviews • Political party data standards development • Pre-election security assessments	• IEBC technical consultations • Electoral integrity forums • Political party stakeholder meetings • Democracy and governance dialogues • Electoral commission briefings
Additional Sectoral Regulators	• Ensure sector-specific compliance across insurance, procurement, competition, capital markets, SACCOs, pensions • Coordinate regulatory oversight • Prevent regulatory gaps and overlaps • Establish consumer protection standards	• Sectoral regulation harmonization • Consumer protection framework development • Market integrity standard setting • Cross-sectoral compliance coordination	• Inter-regulatory coordination forums • Sectoral compliance workshops • Regulatory harmonization committees • Consumer protection dialogues • Joint regulatory bulletins
Utilities and Critical Infrastructure	• Secure critical infrastructure data protection • Ensure operational data governance for energy and IT systems • Establish cybersecurity standards for utilities • Enable reliable digital government services	• Critical infrastructure protection planning • Cybersecurity framework development • Digital government service standards design • Infrastructure resilience assessments	• Critical infrastructure forums • Cybersecurity working groups • Digital government coordination meetings • Infrastructure security briefings • Technical standards committees
Identity and Registration Services	• Ensure citizen identification data security • Establish biometric data governance standards • Enable secure government service delivery • Protect civil registration data integrity	• Identity system governance framework design • Biometric data protection standard setting • Government service integration planning • Civil registration data security reviews	• Identity management technical forums • IPRS coordination meetings • Government service delivery workshops • Data security briefings • System integration planning sessions
Civil Society, Rights Groups & Advocacy	• Ensure data rights and privacy protections are robust • Build transparency and accountability mechanisms • Incorporate vulnerable group protections • Validate policy through civil society endorsement • Address digital rights concerns	• Early policy consultation and co-design • Rights impact assessment • Privacy safeguards development • Accountability mechanism design • Public consultation validation	• Multi-stakeholder consultation forums • Rights-based dialogue sessions • Public policy hearings • Civil society working groups • Social media engagement campaigns • Newspaper opinion pieces and interviews • Radio and TV panel discussions
Data Citizens/General Public	• Build public trust and legitimacy for policy • Ensure citizen-centric policy design	• Public awareness campaigns (early and ongoing)	• National town halls and public forums

Stakeholder Groups	Why do we engage?	When do we engage?	What communication tools do we use to engage?
	● Gather grassroots feedback and concerns ● Create awareness of data rights ● Enable informed public participation	● Open public consultations ● Citizen feedback collection periods ● Rights education initiatives ● Post-approval public communication	● Social media campaigns (Facebook, Twitter/X, Instagram, TikTok) ● National TV (KBC, Citizen TV, NTV) and radio (Radio Citizen, Classic FM) ● Newspapers (Daily Nation, The Standard, Taifa Leo) ● SMS public alerts ● Government portals and websites ● Mobile apps and chatbots ● Community outreach programs
Academic & Research Institutions	● Generate evidence base for policy decisions ● Support capacity building for implementation ● Provide independent policy analysis and evaluation ● Develop data literacy curricula	● Policy research commissioning ● Evidence generation and validation ● Impact assessment studies ● Capacity building program design ● Evaluation framework development	● Research partnerships and MOUs ● Academic policy dialogues ● Evidence synthesis workshops ● University stakeholder forums ● Research dissemination conferences ● Policy brief exchanges

2.6 Findings from Primary Data Collection

Primary data collection was conducted through five methods: Key Informant Interviews (KIIs) with senior officials and technical experts from public institutions, regulatory bodies, county governments, private sector organizations, and civil society; a structured institutional data governance survey distributed across ministries, departments, agencies, and county governments; three regional town hall meetings with attendance from more than 12 counties; a pilot data assets mapping exercise conducted with 33 state departments; and structured exchanges with international data governance experts from four jurisdictions. Summary of key findings are presented in each of the subsequent sub sections.

2.6.1 Findings from Key Informant Interviews

A series of Key Informant Interviews (KIIs) were conducted in October 2025 as part of the primary data collection phase for developing Kenya's National Data Governance Policy. The interviews were held with 12 senior officials and technical experts from critical public institutions, regulatory bodies, county governments, private sector organizations, and civil society to gather authoritative insights on the current state of data governance in Kenya and inform policy gaps to be addressed. The following six themes emerged from the interviews.

Conceptual Confusion Between Data Protection and Data Governance

There is a systemic misinterpretation at many levels, including senior leadership, on the roles and mandates between data protection (privacy as human right and its regulatory compliance

and enforcement) versus data governance (promoting data as a strategic national asset, to be harnessed and exploited for economic and public good).

Kenya has made significant strides in personal data protection driven by the Office of the Data Protection Commissioner (ODPC). However, the broader data governance dimensions have not been fully articulated or consolidated into a single coherent framework to guide on data standards, data quality, data value creation, and the governance of non-personal data held by data custodians in the civil society, private and public sectors.

This has left critical aspects of the data ecosystem without a dedicated institutional champion or policy framework. Although some stakeholders would have wanted the above data governance issues to be addressed by ODPC through an expanded mandate, others noted that it would be structurally inappropriate for the ODPC, as a regulatory body, to be tasked with an operational data governance mandate, which they believed is better placed within a dedicated Data Governance body.

Institutional Silos and Coordination Gaps

The need to break down data silos across government institutions was emphasised by most stakeholders interviewed. While many institutions have digitized operations, there is minimal cross-ministry data sharing or analysis and this was attributed to weak central government data storage systems coupled with poor data culture within these institutions. A fundamental gap exists in defining clear institutional mandates and coordination mechanisms for data governance. Stakeholders across various sectors expressed uncertainty about which ministry or agency should serve as the policy's custodian and oversight body. This ambiguity is compounded by the absence of coordination frameworks between national and county governments, leading to duplicative data collection, bureaucratic friction in data sharing, and institutional silos that prevent coherent national data implementation. County governments also lack policies to clearly define roles as well as inadequate technical capacity for data governance.

Data Quality Standards and Infrastructure

Data sharing agreements are developed in an ad hoc manner with data sharing practices varying significantly across institutions. Fundamental data quality standards are absent including lack of mandatory requirements for gender, age, disability, and geographic disaggregation. Beyond the standard principles of transparency, fairness, and accountability found in the Data Protection Act, interviewees stressed the need for data minimization to address redundant data collection, completeness and accuracy to ensure data quality, and critically, availability, which is frequently absent from existing frameworks. Additionally, FAIR principles- Findable, Accessible, Interoperable, and Reusable- were recommended as standards to be adopted to improve efficiency, reduce duplication, and prepare Kenya's data infrastructure for AI and emerging technologies. Without a comprehensive national framework, institutions are developing their own data governance policies based on international standards (e.g. DAMA) resulting in inconsistent approaches across government.

Capacity and Skills Gaps

Kenya has a limited number of trained data governance professionals who understand both the technical and regulatory dimensions of data governance. Various proposals were made to set

up formal data governance training programs and professional development. The respondents also proposed continuous training for government officials on data governance.

Emerging Technology Governance and the Risk of Further Fragmentation

The relationship between data governance and artificial intelligence governance emerged as a policy concern with stakeholders noting that data governance should address aspects of AI systems given that they are dependent entirely on data infrastructure and quality. Stakeholders requested a risk-based policy environment that provides clarity without stifling innovation in emerging technologies and automated decision-making tools. Necessary provisions recommended for inclusion included ethics and bias safeguards, data quality requirements specific to AI training, explainability, human oversight, and risk assessment. Respondents warned against the emergence of a fragmented set of standalone acts, such as a potential AI Act, IoT Act, or similar, without a comprehensive umbrella framework to ensure coherence.

Priority Sectors for Implementation

Interviewees identified specific priority sectors that could anchor national data governance implementation notably health, agriculture, education, and transport sectors. The sectors address Kenya's most pressing socio-economic development challenges. By piloting in these sectors, the policy could test standards, quality requirements, and access frameworks before broader rollout.

Cross-border Data Transfers and Data Sovereignty

Data sovereignty and cross-border data transfers were also policy concerns given the recognition of data as a national asset requiring protection through clear protocols in international agreements. This includes reciprocity in cross-border data flows and focus on national priorities.

2.6.2 Findings from Townhalls

Three regional town hall meetings were held as part of the participatory policy development process for the National Data Governance Policy. These town halls engaged diverse stakeholders including community members, civil society organizations, county government representatives, academia, business leaders, and innovators in strategic regions. The major findings from the town halls are based on four main themes.

Data Rights and Citizen Empowerment

Participants across all town halls were concerned about their data rights, reporting widespread data collection without informed consent, hidden clauses in terms and conditions that users rarely read and extensive third-party data sharing without proper authorization. Participants also observed existing gaps in citizen awareness of basic data rights such as access, rectification, and erasure and the protections of vulnerable groups such as children's data protections. However, stakeholders also recognized that improved data governance could deliver economic benefits, with better trust in data systems potentially increasing user engagement and economic growth while creating employment opportunities in emerging fields including data protection compliance and cybersecurity.

Institutional Fragmentation and Governance Structure

Similar to findings from the key informant interviews, townhall participants mentioned systemic challenges stemming from a poor institutional coordination in existing data governance architecture. This results in fragmentation and data silos creating inefficiencies across government. Stakeholders described redundant data collection occurring between national and county governments, poor coordination at different administrative levels leading to duplicated efforts and confusion, and non-integrated systems requiring citizens to provide the same information repeatedly to different government agencies. The lack of clarity around roles and responsibilities compounds these coordination challenges, prompting calls for well-coordinated collaboration between national government, county government, and local communities supported by clearly defined data governance structures.

Devolved Governance Structures and Accountability

Multiple stakeholders emphasized the need for an independent Data Governance Authority at the national level to oversee policy harmonization and provide impartial oversight, working in concert with County Data Coordinators responsible for local implementation and data sharing with national systems, and Sub-county Data Stewards tasked with grassroots data collection, verification, and community awareness campaigns. Participants stressed that effective devolution of data governance also required comprehensive training programs and accountability frameworks to ensure consistent implementation across all levels of government.

Legal, Regulatory and Enforcement gaps

There are significant legal and regulatory gaps despite the existence of foundational legislation like the Data Protection Act 2019. Stakeholders across regions consistently described enforcement of existing data laws as weak and with limited implementation. The absence of a unified national policy creates regulatory fragmentation, while ethical concerns about data sharing and standards remain inadequately addressed. Participants emphasized the lack of clear policies on critical issues like data storage limitations, standardized frameworks for data collection, and protections against security and privacy risks such as identity theft. Multiple participants advocated for data governance audit systems similar to financial audits to ensure ongoing compliance and accountability.

2.6.3 Findings from Institutional Data Governance Survey

A comprehensive institutional survey to assess data governance maturity, capabilities, and priorities across Kenya's public sector was conducted as part of the evidence base for developing the National Data Governance Policy. The survey targeted all government ministries, departments, agencies, and county governments (MCDAs). The survey covered multiple thematic dimensions including institutional maturity levels in data governance, resource allocation to data governance, digital infrastructure, human capacity, data management practices and culture.

Data Governance Maturity in Early and Uneven Stages

The survey revealed that public institutions are predominantly in early to middle stages of data governance maturity, with most institutions reporting either basic frameworks under

development or documented frameworks that exist but have limited implementation. Many institutions appear to be at the first stages of implementation, “pilot phase”, where they recognize the need for governance structures but have yet to embed these into operational processes and organizational culture. The variation in maturity levels indicates heterogeneous approaches across public institutions, presenting coordination challenges for national policy implementation.

Data security and privacy policies are most commonly documented due to strong regulatory compliance pressures from legislation like the Data Protection Act, 2019. However, operational governance policies in institutions lag significantly, with data quality management and data sharing policies much less developed despite being fundamental to deriving value from data assets and enabling cross-institutional collaboration.

Resource and Budget Constraints

A substantial proportion of institutions reported no dedicated budget whatsoever for data governance activities, while many others allocate only one to five percent of their IT budgets. The resource limitations extend beyond financial constraints to include limited full-time equivalent staff dedicated to data governance work across institutions. The survey asked institutions to rate skill availability across multiple data governance and technical domains. Despite most institutions having database administration professionals, significant capability gaps include data governance and compliance expertise, strategic data leadership, AI and machine learning capabilities, and data security and privacy specialists. The survey also indicated that most institutions are in early stages of AI readiness, with the majority describing themselves as either not ready with significant barriers or in early preparation stages.

Key institutional technical and management challenges

Fragmented systems and data silos emerged as a common challenge within institutions due to insufficient budget and resources. Institutions experience limited technical expertise, reflecting an existing skills gap for data governance maturity. Weak executive support and leadership appeared frequently, suggesting that data governance often struggles to secure high-level organizational commitment necessary for cultural change and strategic integration. In addition, digital infrastructure limitations in public institutions related to aging/legacy systems and gaps in foundational data technologies for data cataloging and metadata management tools as well as poor data quality, and regulatory compliance complexity. Institutions further identified priority improvement areas with data security and privacy topping the priority list. Other areas of priorities include staff skills and training, data sharing and integration capabilities, data quality management and analytics capabilities.

2.6.4 Findings from Data Assets Mapping

As part of the policy development process, a pilot data assets mapping exercise was conducted across 33 state departments to provide foundational understanding of the country's data landscape. The exercise was undertaken to establish a baseline of what data assets the government holds, how they are managed, and where gaps in governance exist. This baseline is essential for informing evidence-based policy decisions, enabling better data sharing across government, and ensuring that data is treated as a strategic national resource. Across these institutions, a total of 136 data assets were identified and registered. The assets registered span a range of data classifications, including personal, sensitive, and confidential data, and are

stored across a mix of infrastructure types including on-premises servers, government cloud, private cloud, and public cloud environments. While these initial results demonstrate meaningful progress and a willingness among institutions to engage in structured data governance processes, the findings from this pilot will directly inform the development of the national data strategy, which will provide the institutional framework and guidance needed to complete and sustain the assets mapping process at scale.

The data assets mapping exercise revealed a number of structural and institutional gaps that shaped the depth and completeness of the process.

Undefined Roles and Fragmented Asset Knowledge

While staff across state departments demonstrated awareness of the data assets they work with, the absence of formally defined custodianship roles meant that not all participants were best positioned to support a comprehensive mapping exercise, and knowledge of assets remained fragmented rather than centralised. This points to a broader need for the clear definition of data governance functions, including the formal assignment of roles such as data owners, stewards, and custodians, to ensure accountability and coherence in how assets are identified and managed.

Inconsistent digitization, classification, and unresolved security implications

Uneven state of digitisation was observed across state departments, as well as limited shared understanding of what constitutes a data asset and how it fits within the broader data value chain. The registered assets included personal, sensitive, and confidential data stored across varied environments without consistent classification or access-control documentation. This highlighted the urgency of clear national classification standards, data residency guidelines, and security protocols as prerequisites for making assets discoverable without simultaneously creating new risks.

The digital management information systems in use within state departments serve as a valuable starting point, offering a foundation from which data governance processes could begin to be documented and data better understood. To complete the data asset mapping, all relevant officers with data governance roles need to be involved. The exercise also underscored an urgent need for targeted capacity building to improve data literacy and governance competencies across all levels to develop the national data registry or catalogue.

2.6.5 Findings from International Data Governance Experts

As part of the policy development process, a series of structured exchanges and strategic benchmarking meetings were held with four different jurisdictions, international partners with experience in data governance regulation, implementation, and ecosystem development. The exchanges covered regulatory design, institutional architecture, data sharing frameworks, cross-border data flows, emerging technologies, and capacity building. The findings are synthesized in the following themes.

Adopt a Risk-Based, Principles-Driven Regulatory Framework

The experts recommended building a framework that is proportional, flexible, and principles-driven, enabling innovation while providing clear compliance pathways. Regulatory sandboxes

were highlighted as a practical tool to allow iterative testing of novel data uses without prematurely locking in rules. The partners also cautioned against building a data governance system out of multiple fragmented laws, noting that this creates confusion and compliance fatigue. The experts recommended a holistic approach in which a single coherent policy framework serves as the umbrella for all data-related legislation, including any future AI or IoT-specific rules.

Establish Clear Institutional Architecture and Mandate

Defining which institution owns, coordinates, and enforces the policy was a key concern. Experts expressed that overlapping mandates and unclear institutional responsibilities are a primary driver of implementation failure. The experts recommended the need to define clearly, from the beginning, which body owns, coordinates, and enforces the data governance policy. Partners also stressed that enforcement authority should be distinct from, but complementary to, data protection functions to prevent both duplication and gaps. It was further noted the need to have right institutional design before adoption was not only effective but also less costly to implement.

Build Trusted Data Sharing Infrastructure

The experts interviewed emphasized the value of building reliable mechanisms for both public sector and cross-sector data sharing. Key recommendations for data sharing infrastructure included: the establishment of data intermediaries as neutral entities that facilitate trusted data exchange without exploiting the data themselves thus connecting data holders and users across sectors. Additionally, developing model contracts and standardized data sharing agreements can reduce transaction costs and create a level playing field, particularly for SMEs and startups, against exploitative terms from larger data holders. Other lessons learnt included the benefits of setting up of centralized data catalogs or data pools and open-source interoperability tools to make data across agencies and sectors discoverable and reusable and, standardising metadata as a practical first step toward interoperability, even before full cross-sector data format harmonization is achieved.

Resolve Cross-Border Data Transfer Ambiguity

The experts shared insights on establishing trusted cross-border data flows that are essential for innovation, economic growth, and AI development. Key recommendations shared included the establishment of clear adequacy frameworks to designate trusted destination countries, and avoidance of overly restrictive data localization mandates. Other recommendations included building toward internationally harmonized standards to avoid fragmentation and ensuring interoperability across jurisdictions and applying a tiered risk-based approach where cross-border transfers do require controls.

Govern Emerging Technologies

There was an agreement from partners that data governance frameworks must anticipate and address AI and other emerging technologies from the outset, rather than treating them as a future problem. Recommended provisions for data governance policy included ethics and bias safeguards, data quality standards specific to AI training, explainability and human oversight requirements, and risk assessment procedures. Partners also recommended that Kenya allows for agile and forward-looking policy frameworks that can evolve as technologies mature.

Incentives as a Driver of Compliance

A practical lesson shared across exchanges was that imposing additional duties on data actors without creating genuine incentives tends to have low uptake. Partners recommended pairing obligations with positive incentives such as financial support, recognition and certification schemes, regulatory clarity as a commercial benefit, and reduced compliance burdens as a reward for good practice. This applies particularly to encouraging voluntary data sharing, open standards adoption, and participation in data spaces or exchanges.

Invest in Data Literacy Across Society

The experts highlighted data literacy as foundational to the success of any governance framework. Recommendations included embedding data and data law literacy into university and school curricula, building civil society capacity to engage meaningfully with data governance processes, and equipping government officials with sufficient understanding of what the law permits so that misinterpretation does not become a de facto barrier to lawful data use.

Learn from Mistakes from Other Jurisdictions, Not Just Their Successes

Experts observed that regulatory journeys by various countries present successes and challenges. Partners explicitly encouraged Kenya to study where things have not worked including coordination failures, fragmented legislation, slow intermediary uptake, and the difficulty of cross-sector data standardization and to use those lessons to design more coherently from the start, rather than replicating models wholesale.

2.7 Key Lessons from Primary Data Collection

The five primary data collection methods together paint a consistent and mutually reinforcing picture of Kenya's data governance landscape. The following lessons emerge from the findings.

- a) The policy should establish a clear institutional framework as its first priority. Without a clear institutional architecture for data governance, resources, standards, and laws will all underperform. Resolving institutional architecture is a foundation for data governance.
- b) The policy should position data governance as distinct from and complementary to data protection. Data quality, sharing, and value creation remain underdeveloped compared to security and privacy. This policy should also position all aspects of data governance to complement data protection as an important agenda.
- c) The policy should ensure that frameworks are backed by enforceable mechanisms. The consistent pattern of strong legislation on paper and weak implementation in practice signals that enforcement capacity and resources must be built into the policy from the outset, not deferred to a later phase.
- d) The policy should treat capacity building as a core intervention. Skills and capacity gaps appear at every level, from citizens to senior officials and vary with institutions. Capacity building must run in parallel with every other policy intervention and be adequately resourced.
- e) The policy should establish a coherent legal umbrella to contain fragmentation and address legal challenges and conflicts presented by existing laws. This policy must

establish a coherent umbrella framework from the outset and create mechanisms to ensure future legislation aligns with it rather than operating independently.

- f) The policy should place citizens at the center of data governance. Public trust cannot be assumed. It must be earned through meaningful participation, transparent accountability, and visible demonstration that data governance delivers benefits back to citizens.
- g) The policy should pair governance obligations with genuine incentives. Governance requirements without positive incentives produce low uptake. Recognition, reduced compliance burdens for good practice, and tangible benefits from data sharing are as important as the obligations themselves.

2.8 Conclusion

This contextual analysis demonstrates that Kenya's data governance challenges represent interconnected systemic gaps requiring comprehensive, coordinated responses rather than isolated technical, legal, or institutional fixes. The six thematic areas (institutional architecture, data as economic asset, quality and infrastructure, legal harmonization, capacity building, and rights and trust) reveal consistent patterns across global, regional, and national contexts while illuminating Kenya's specific challenges.

Global and regional frameworks provide tested models adaptable to Kenyan context. Advanced economies including the United States, European Union members, Japan, and others demonstrate how multi-tiered governance structures enable coordination; how data can be leveraged as a strategic asset for development; how technical standards and infrastructure create foundational capabilities; how legal harmonization facilitates trusted data exchange; how systematic capacity building enables implementation; and how rights protections and transparency build trust essential for data sharing. Regional frameworks including the African Union Data Policy Framework, Malabo Convention, AfCFTA Digital Trade Protocol, and EAC Data Governance Policy Framework provide more directly relevant models reflecting African contexts, priorities, and constraints.

These lessons are strongly validated by Kenya's own primary evidence. KIIs, institutional surveys, regional town halls, and the pilot data assets mapping exercise consistently confirmed that most institutions operate in early stages of data governance maturity, conflating data protection with broader data governance. These institutions lack dedicated budgets, defined roles and interoperable infrastructure for data governance. Citizens participating in town halls experienced these gaps directly, reporting redundant data collection, weak enforcement of existing rights, and limited awareness of how their data is used, indicating that the data governance policy should also gear towards building public trust in its technical design. The stakeholder mapping, spanning over 35 groups from senior policy makers and regulators to civil society, traditional custodians, and the public, underscores that effective implementation will require sustained engagement across a broad coalition, balancing the influence of high-power actors with the rights and voices of those most affected by how data is governed.

Kenya's National Data Governance Policy must simultaneously establish institutional coordination; recognize data's economic value; set technical standards; harmonize legal frameworks; build capacity; and protect rights, with each dimension reinforcing others. The integrated lessons framework synthesized in this chapter provides specific, actionable recommendations grounded in comparative analysis and validated through Kenyan stakeholder perspectives. Implementation requires sustained political commitment, adequate resources,

phased rollout aligned with capacity development, meaningful public participation, and ongoing evaluation and refinement.

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3. Policy Foundation

3.1 Vision

A data-driven society and a leading digital and knowledge economy

3.2 Purpose

To establish a robust, inclusive, and ethical policy framework for the management of data as a strategic national asset while harnessing the potential of data to foster sustainable and inclusive socio-economic development for all citizens.

3.3 Data Governance Principles

The Policy is based on the following principles:

- a) **Data as a strategic national asset:** To enable service-oriented government, support evidence-based decision-making, and strengthen transparency and citizen engagement, all organizations shall manage their data as a shared national asset and exercise custodial responsibility for that data on behalf of the Kenyan people.
- b) **Standardisation:** Kenya will use common, consistent standards for collecting, storing, analysing, managing, and sharing data across all state departments and agencies, counties, private sector organizations, and partners. Standardised data will be interoperable, compatible, and reliable, enabling seamless integration and exchange of information to improve decision-making and service delivery.
- c) **Single sources of truth:** To deliver customer-centric services, government entities will use a "single source of truth" for core data instead of creating duplicate datasets. Primary registries will hold authoritative, high-quality data that all organizations must access and reuse in line with common standards. Citizens and businesses should only need to provide the same data to the government once, after which it is securely shared and reused across entities with their consent.
- d) **Data sovereignty and national interest:** Kenya asserts its sovereign right to govern all data generated within its territory, pertaining to its citizens, and concerning its national interests. This principle ensures that Kenya maintains strategic autonomy of its data in the digital age, harnessing its value for the development of her economy and peoples while engaging with the global digital economy from a position of strength and mutual respect.
- e) **Human-centricity and rights:** This Policy is grounded in the recognition that data governance upholds fundamental human rights enshrined in the Constitution of Kenya including Articles 10, 31 and 35, the Data Protection Act 2019, and Access to Information Act. Data subjects' dignity, autonomy, privacy, and interests remain paramount across the entire data lifecycle.
- f) **Inclusive co-creation and equitable benefits:** Kenya's data ecosystem engages the public and private sector, academia, civil society, and citizens as co-creators and stewards. This collaborative approach will ensure responsiveness, innovation and trust

and at the same time implement proactive measures for equitable benefit distribution, preventing data-driven disparities.

- g) **Secure data sharing and reuse:** Kenya maximizes data value through responsible sharing via open data portals using open standards. Personal data privacy, organizational confidentiality, and IP rights remain fully protected while enabling discovery, interoperability, and broad reuse.
- h) **Trust and transparency:** Kenya's data governance prioritizes trust through ethical stewardship and full accountability. All actors maintain transparent, auditable data practices beyond legal compliance.

4. Policy Statements

4.1 Data Infrastructure and Technical Governance

4.1.1 Policy Gaps

The most fundamental and pervasive weakness in the national data ecosystem is the absence of a national framework that comprehensively provide guidance on data quality, standards, and technical governance. Without this foundational policy framework, public institutions are compelled to independently adopt and adapt international frameworks (such as Data Management Body of Knowledge, ISO 8000, and Data Catalogue Vocabulary), producing highly uneven levels of maturity and sophistication across sectors.

Notably, no comprehensive national standards exist for critical technical domains, including data quality metrics, classification systems, reference architectures, interoperability protocols, master data management, metadata management, or infrastructure governance. The FAIR principles (Findable, Accessible, Interoperable, Reusable) have not been adopted as a mandatory national benchmark, and no dedicated statutory or technical body exists to develop, maintain, update, or enforce data standards across government. This gap impacts sectors growth and in particularly the emerging sectors such as the blue economy and extractive industries with limited domestic capacity heavily relies on foreign providers for data capture, processing, and storage, further impacting on the national data sovereignty.

Policy and regulatory shortcomings extend deeply into data content and lifecycle management. There are no enforceable requirements for systematic disaggregation of data by gender, age, disability, or geographic location, thus rendering voluntary data collection inconsistent across institutions. Equally absent are robust rules, processes, and institutional mechanisms for data verification, validation, and continuous updating, while the absence of a centralized national master data repository severely hampers authoritative verification of core datasets. Master Data Management (MDM) remains underdeveloped, characterised by inconsistent quality controls, inadequate or spreadsheet-based metadata practices, and weak or non-existent data architecture documentation. Institutional surveys consistently rate data architecture as low or non-existent, with MDM implementation reported as partial or entirely absent across key domains.

With regard to data infrastructure and interoperability, the existing policy frameworks have not adequately addressed interoperability standards, resulting in a fragmented and duplicative landscape. Absence of a single national data repository or government-wide data lake has resulted in multiple government entities investing in parallel, siloed data centres and storage solutions. Integration between systems is minimal, with many reported as completely isolated. It is noted that institutions rely on ad-hoc and insecure sharing practices often on emails, portable and shared drives. Significant technical debt accrues from legacy systems and vendor-locked platforms that restrict government's ability to access, retrieve, and independently use its own data — limiting the state's capacity to audit, migrate, or modernise its data infrastructure without vendor intermediation.

Finally, critical gaps persist in the governance of data sensitivity, retention, security, and privacy. Institutions employ inconsistent or rudimentary data classification schemes (secret, confidential, public) in the absence of a mandatory national guideline, leaving classification decisions to the discretion of individual institutional heads. Absence of centralised data catalogue or archive to register datasets and their metadata for discoverability in a barrier to

effective data management. Thus, management of data is particularly weak requiring clear national guidelines on retention schedules, secure archiving, deletion protocols, and long-term preservation-especially for highly sensitive biometric and health registries.

In addition, there is policy challenge on cross-border data transfer obligations when datasets are acquired by multinational entities. Despite the existence of laws such as Data Protection Act (2019) and Computer Misuse and Cybercrime Act (2019) and cybersecurity strategies and policies, implementation remains deficient in data classification enforcement, access controls, authentication systems, and incident response capabilities. Privacy and security continue to be governed through separate, uncoordinated frameworks rather than an integrated risk-based approach aligned with international standards, such as ISO 27001 which has been adopted by some public institutions in Kenya. Institutions repeatedly highlight the urgent need for comprehensive national policy guidance, binding technical standards, dedicated governance institutions, and sustained capacity-building to close these systemic gaps.

4.1.2 Policy Objectives and Interventions

The first policy objective to address the data infrastructure and technical governance gap is:

Policy Objective 1.1: Establish a unified and interoperable national data infrastructure and harmonized national quality standards, guidelines and protocols. This will involve localizing international structures to ensure consistent governance across institutions, covering metrics, classification, architecture, and interoperability. In order to achieve this objective, the following interventions will be implemented:

1.1.1: Develop comprehensive and mandatory national technical standards and guidelines. The key standards and guidelines to be developed include:

- a) Data disaggregation standards,
- b) Guidelines on identification of verifiable data sources within MCDAs,
- c) National interoperability guideline,
- d) Comprehensive data lifecycle management protocols,
- e) National data catalog, data categorisation, and data classification guidelines,
- f) Master Data Management (MDM) guidelines,
- g) Vendor-neutral procurement guidelines,
- h) Role-based security and encryption guidelines,
- i) Classification and incident response guidelines,
- j) Standards for secure data exchange,
- k) National standards for data valuation, pricing and revenue models,
- l) National governance standards for AI training data and other high-impact data reusable datasets, and
- m) Data security standards.

These technical standards and guidelines will enforce harmonized identifiers, definitions, classifications, interoperability protocols (SDMX, sector-specific, open APIs), and data quality metrics across all public institutions and new ICT procurements.

1.1.2: Establish a National Data Asset Register and Discovery Portal

Map all national data assets across the public sector, cataloging every dataset including administrative data with standardized descriptions, sensitivity classifications, ownership, reuse

rights, licensing, and benefit-sharing arrangements. This register shall be operationalized through a single, publicly accessible discovery portal with mandatory access protocols, enabling secure secondary use, analytics, and AI training while protecting the public interest. All government entities shall be required to register and maintain current dataset entries.

1.1.3: Establish Centralized Master Data Management Infrastructure in MCDAs

Provide centralized master data repositories for all core reference entities — persons, businesses, locations, land parcels, vehicles, and other canonical records — hosted within designated MCDAs as authoritative single sources of truth. These repositories shall be continuously updated with strict identity validation and privacy-by-design protections, making real-time verification services mandatory for all government systems and transactions. No government system shall maintain an independent copy of a core reference entity without synchronization to the authoritative master record.

1.1.4: Consolidate Public Sector Data Infrastructure through a National Data Lake and Mandatory Rationalization

Rationalize fragmented MCDA data centers through mandatory infrastructure capacity assessments and spend controls that eliminate technical silos and redirect investment toward shared data infrastructure. Consolidated infrastructure shall underpin a national public sector data lake that ingests and harmonizes datasets classified through the national register, enabling secure cross-agency analytics and evidence-based decision-making. All public servants shall use official platforms for data storage and analysis, and no new siloed data center expenditure shall be approved without a demonstrated exemption from the rationalization framework.

1.1.5: Deploy a National API Gateway for Interoperability

Design, build, and mandate adoption of a national API gateway serving as the primary interoperability layer connecting all government systems, master data repositories, the data lake, and authorized external consumers. The gateway shall enforce common API standards, authentication, authorization, and audit logging across all integrations. All new government systems shall be API-first by design, with existing systems migrating to the gateway under a phased transition plan, enabling real-time data exchange and securely controlled third-party access under the licensing arrangements defined in the national data register.

4.2 Institutional Coordination and Governance Architecture

4.2.1 Policy Gaps

A fundamental gap exists in the form of overlapping institutional mandates, unclear lines of authority and systemic fragmentation. There is uncertainty regarding which ministry or agency holds ultimate custodianship and oversight for national data management and governance. This ambiguity has led to siloed data collection efforts at both national and county government levels, resulting in redundant data and inefficient use of public resources. Inadequate unified governance structure, absence of effective coordination frameworks across national, county and sectoral levels and ad hoc approaches to data management roles leads to limited broader socio-economic benefits of unlocking the potential use of data.

Survey data revealed that critical enterprise-wide roles such as Data Owners, Data Stewards, and Data Custodians are not clearly defined in the public sector. The most common formal data governance role is that of the Data Protection Officer primarily driven by regulatory compliance while other strategic roles of data management not adequately addressed thus hindering the development of a mature and strategic data ecosystem. Consequently, there is an urgent need to establish a clear institutional framework with well-defined roles and responsibilities to guide the national data ecosystem.

4.2.2 Policy Objectives and Interventions

The following objectives and interventions are designed to build a coherent, robust, and accountable governance structure that provides strategic leadership, a coordination mechanism and effective oversight for the national data ecosystem.

Policy Objective 2.1: Develop clear institutional mandates and create an effective, coordinated governance architecture. This will eliminate silos, reduce duplication, and enable seamless data management and governance across government entities at national and county levels. In order to achieve this objective, the following interventions will be implemented:

2.1.1 Establish a National Data Governance and Emerging Technology Council by law with clear oversight and coordination responsibilities. This Council will provide overarching oversight and coordination of data governance and emerging technologies across all sectors. The Council will be supported at the national level by a Data Governance Office (DGO) established within the State Department in charge of data governance, headed by a National Chief Data Officer (CDO), and serving as the operating arm of the Council for day-to-day management of public sector data assets. A corresponding Data Governance Office will be established within the Council of Governors (CoG) to coordinate data governance implementation across all county governments. The Council will be advised by a National Multi-stakeholder Steering Committee with representation from public sector, private sector, academia, and civil society to provide strategic input for data governance implementation. The Council will have functional reporting to the National Assembly for cross-sector collaboration and facilitation of resources.

2.1.2 Devolve data governance and emerging technology structure and roles to all government MDAs and counties by establishing institutional data governance and emerging technology committees. This involves formally defining and implementing enterprise-wide public sector data roles including Data and Emerging Technology Officers, Data Owners, Data Stewards, Data Architects and Data Custodians and integrating them into institutional structures. County Data and Emerging Technology Offices will lead implementation at the county level and facilitate coordination between the national and county governments while designated Sub-County Data officers will lead grassroots implementation and community engagement. Technical Committees under the National Data Governance and Emerging Technology Council will be formed to address specific technical domains. Clear job descriptions, performance metrics and mandatory training on role responsibilities will be developed for clarity.

2.1.3 Create multi-level data governance coordination and collaboration frameworks and protocols. Based on the federated operating model, the Government will develop standardised frameworks and protocols to ensure coherent, non-duplicative coordination across the

governance architecture. This includes formal inter-agency collaboration agreements between MDAs, governed through the Inter-Agency Coordination Committee under the DGET Council, and structured national-county coordination protocols between the DGO at the national level and the DGO at the Council of Governors. These frameworks will establish regular inter-agency consultations, joint reporting mechanisms, and clear escalation pathways for resolving coordination challenges and data ownership conflicts between the national and county governments.

4.3 Legal and Regulatory Frameworks

4.3.1 Policy Gaps

Kenya's data governance landscape reveals critical gaps that prevent the country from fully realising the developmental potential utilization of its data resources. The existing policy and legal framework exhibits gaps. While the Data Protection Act (2019) provides a mature framework for personal data protection, no equivalent comprehensive framework exists for non-personal data governance, including statistical data, anonymised datasets, administrative records, research data, and IoT-generated data. Multiple sector-specific laws operate independently lacking coherence, creating compliance burdens and regulatory uncertainty. The absence of an overarching National Data Policy or coordinating Data Governance Law results in inconsistent approaches across sectors and levels of government. This fragmentation is compounded by critical foundational deficiencies: non-personal data lacks clear legal definition; Kenya has not adopted FAIR principles (Findable, Accessible, Interoperable, Re-Usable) as mandatory standards; and fundamental questions about ownership, access rights, and permissible uses of non-personal data remain unresolved. The Statistics Bill 2026 (published 28 April 2026, currently under public participation) seeks to extend the ambit of the Statistics Act 2006 and its scope is confined to official statistics produced within the National Statistical System. These gaps are reinforced by the absence of appropriate institutional architecture. Kenya does not have a dedicated institutional mechanism with clear mandate and powers to oversee data governance and emerging technologies, coordinate strategy across sectors, or ensure coherent policy implementation. Further, there is no framework recognising data as a factor of production with associated property rights, creating uncertainty that discourages investment and the emergence of a functional data economy.

The cross-border dimension represents a significant missed economic opportunity. Kenya does not have a comprehensive framework for trusted cross-border data flows that balances regional integration commitments under the EAC Common Market Protocol and AfCFTA Digital Trade Protocol with legitimate national sovereignty and security concerns. While the Data Protection Act (2019) recognises the importance of facilitating lawful and secure data flows, operationalising this vision requires comprehensive mechanisms. Data localization policies remain unclear, creating tensions with regional trade obligations and uncertainty for businesses operating across borders. The absence of formal adequacy arrangements or internationally recognised frameworks for trusted data flows limits Kenya's ability to participate in preferential trade among countries with recognised data protection regimes. There are no clear provisions addressing data transitions during multinational acquisitions, and businesses currently must invest heavily in dedicated risk and compliance departments to navigate multiple regulatory frameworks costs that could be significantly reduced through harmonised regional approaches. Additionally, consumer protection deficits undermine trust in the emerging data economy. No comprehensive safeguards exist against dark (opaque) patterns that undermine informed consent, including pre-checked consent boxes, hidden privacy statements, confusing language,

and bundled consent for unrelated purposes. Privacy and security are treated as separate concerns rather than integrated components of data governance, and uniform compliance requirements disproportionately burden smaller enterprises. The existing frameworks do not adequately protect vulnerable and marginalized groups for ethical collection and use of community and cultural data. When data rights are upheld and citizens trust that their data will be handled responsibly, it will foster public confidence required for widespread participation in the data economy.

There is insufficient transparency in use of surveillance technology, with unclear parameters on when surveillance is permitted and what oversight mechanisms exist. High-risk data processing activities involving large-scale collection of non-personal data such as aggregated datasets and statistical information often proceed without systematic risk assessments especially in procurement and project approval processes.

The implementation and enforcement of existing laws remain critically weak. Existing data-related laws suffer from poor enforcement, reflecting undefined institutional responsibilities, inadequate technical capacity, and penalties too weak to ensure meaningful compliance. There is no systematic approach to managing data as a national strategic asset, no mandatory policy review mechanisms, and no provisions for adaptive governance such as technology assessment units or regulatory sandboxes. These gaps, spanning legal fragmentation, foundational deficiencies, institutional vacuums, cross-border complexities, consumer protection weaknesses, and implementation failures, create a fragmented ecosystem that fails to balance innovation with protection, economic development with sovereignty, and private sector interests with public good. Addressing these gaps through a comprehensive Data Governance Law complementary to the Data Protection Act, 2019 is essential to positioning Kenya as a regional digital economy leader and advancing the objectives of the Vision 2030.

4.3.2 Policy Objectives and Interventions

The first policy objective to address the fragmentation of existing data governance frameworks and laws.

Policy Objective 3.1: Develop a Data Governance Law for non-personal data

In order to achieve this objective, the National Government will implement the following interventions:

3.1.1 Develop the Data Governance Law (DGL). This law will be complementary to the Data Protection Act, 2019 to regulate non-personal data. This legislation will define foundational frameworks by codifying FAIR principles (Findable, Accessible, Interoperable, Re-Usable) and establishing specific strategic data categories with clear compliance guidance for organizations. In addition, enacting provisions in the Data Governance Law to recognize data as a factor of production and establishing default property rights is critical. The default property rights will be based on origination, collection investment, and value-addition, while balancing private rights with public interest and maintaining protection for personal data. The framework will clarify ownership in multi-party data relationships and establish rights to use, transfer, derive value, license, and delete data.

Ownership in multi-party data relationships will be clarified, alongside the establishment of rights to use, transfer, derive value, license, and delete data, maintaining protection for personal

data. Public sector data will be subject to mandatory open licensing requirements, with clear frameworks for making such data available through open licenses with the requisite exceptions.

The legislation will create institutional architecture through the establishment of the National Data Governance and Emerging Technology Council with clear mandate and powers. Provisions will also address cross-border and commercial transitions, including documentation, archiving, and data transfer requirements with appropriate amendments to relevant existing laws. The DGL would harmonise the legal framework governing non-personal data across national and county governments by aligning existing laws and developing comprehensive implementation guidelines and protocols on ownership rights, permitted uses, data sharing protocols, and interoperability standards.

3.1.2 License and regulate data marketplaces through the Data Governance Act. This will be achieved by establishing dataset listing requirements (metadata standards, quality certifications); create standard licensing terms for different transaction types; develop consumer protection provisions; establish intermediary liability rules; and create regulatory sandboxes. This creates enabling infrastructure for data commerce while ensuring transparency and fair dealing.

Policy Objective 3.2: Implement robust data governance assessments and mechanisms for large scale data collection systems. These measures are to extend governance principles to non-personal data in order to protect data subjects from surveillance overreach and hold data handlers accountable. To achieve this objective, the following interventions will be implemented:

3.2.1 Develop clear guidelines and oversight mechanisms for the use of surveillance technologies and large scale data collection systems. This is to ensure that surveillance is used transparently and only where permitted for national security or public interest. All Ministries, Counties, Departments, and Agencies (MDACs) will conduct Data Governance Impact Assessments (DGIAs) for high-risk data processing activities including those involving non-personal data such as surveillance, aggregated datasets and statistical information. Regular assessments of how data governance policies impact vulnerable groups will also be conducted. These guidelines will further address the governance of cultural data (including indigenous languages and traditional knowledge systems) recognising that such data is collectively owned, curated, and preserved by the communities from which it originates. Communities will retain autonomy over how their cultural data is collected, used, and shared, with specific safeguards to prevent its extraction or commercialisation without free, prior, and informed community consent. Any resulting benefits must flow back equitably to those communities, and MDACs and licensed data processors will be required to document consent processes and benefit-sharing arrangements as part of their DGIA obligations. Oversight mechanisms will be created to verify assessment completion, implementation of recommended safeguards and periodic updates that reflect changes in technology, processing activities, or risk profiles.

4.4 Emerging Technologies

4.4.1 Policy Gaps

Although the Data Protection Act (2019) provides baseline safeguards for personal data and privacy, Kenya's current policy and regulatory landscape does not constitute a holistic national data governance framework capable of governing the scale, sensitivity and strategic risks of

modern data use. Existing legal and regulatory instruments are largely rigid, compliance-focused, and protection-oriented and therefore do not adequately integrate new data practices arising from existing and emerging data-intensive environments. These include large-scale data generated or reused through advanced analytics, distributed systems, sensor networks, cloud infrastructures, geospatial collection, biotechnology and genomics, quantum computing, and other high-volume or high-velocity data contexts. As data volumes grow and datasets are increasingly aggregated, repurposed, and reused across sectors, public institutions and innovators face uncertainty about how data is lawfully and securely collected, reused, shared and retained.

The absence of operational data governance rules for high-risk data, datasets that, by virtue of their sensitivity, scale, or strategic value, retain the capacity to cause significant harm to individuals, communities, or state interests even when anonymized, aggregated, or classified as non-personal poses compounding societal, economic, security, and sovereignty risks. Kenya has begun establishing responsible-use principles through KS/DKS 3007 (AI code of practice), which provides an important foundation at the AI-system level by emphasizing trust and risk mitigation and clearly defines roles across the AI lifecycle. However, effective implementation of the national guidance remains limited due to: (i) *the operationalization of ethical data use, including fairness, explainability, human oversight, and documentation obligations*; and (ii) *governance of high-impact datasets, encompassing data quality standards, provenance and lineage, standardization, and dataset documentation* — especially where data is reused for advanced analytics, research, or training of data-driven systems. In the absence of such mechanisms, weak and inconsistent data practices undermine reliability, accountability, and public trust.

Kenya also does not have comprehensive data-centric accountability frameworks for automated and large-scale data use, continuous or cross-context data use. There are no mandatory requirements for data-use risk assessments that evaluate how datasets may affect rights, fairness, public safety, or national interests prior to deployment or reuse. At the same time, existing frameworks do not adequately address sovereignty, security, and lifecycle risks arising from modern data environments, including the concentration of sensitive or strategic datasets under foreign jurisdictions, large-scale cross-border data processing, data continuously collected from sensors and physical spaces, long-term retention of high-risk datasets such as genomic or geospatial data, and emerging threats to long-term confidentiality. Without adaptive, data-specific governance mechanisms, Kenya faces growing risks of misuse, re-identification, systemic bias, security breaches, foreign dependency, and loss of digital sovereignty—even where data is nominally non-personal or aggregated.

4.4.2 Policy Objectives and Interventions

Policy Objective 4.1: Develop coherent and adaptive data governance framework for high-risk emerging technologies that enables innovation while safeguarding rights, security and sovereignty. This objective addresses the policy lag and fragmentation affecting AI, IoT, blockchain, robotics, cloud, biotech/genomics, neuromorphic computing, drones/geospatial systems and other fast-evolving technologies. This ensures that Kenya's data governance remains technology-neutral in principles but responsive in application, guided by risk, public interest and sovereignty needs. In order to achieve this objective, the following interventions will be implemented:

4.1.1 Apply technology-neutral data governance principles across emerging technologies and operationalize them through enforceable sector guidance. Apply baseline principles-lawfulness, fairness, purpose limitation, data minimization, quality, accountability, transparency and security to all emerging technologies based data. The sector regulators, under DGET Council and ODPC will provide oversight, to translate these principles into enforceable sector codes and operational standards for high-risk data environments.

4.1.2: Establish mandatory risk-based training data audits for high-risk data uses including AI training and automated data use. Require institutions to conduct standardized, pre-deployment risk assessments for high-impact data uses-particularly where large-scale, derived, inferred, or training datasets are used-to assess data quality, bias risks, rights impacts, cross-border exposure, and mitigation measures, with clear roles for review, audit, approval, and redress across the data governance ecosystem.

4.1.3: Institutionalize accountability and due process safeguards for data-driven and automated decision-making. Require human oversight, documentation, audit logging, transparent notices, contestability, and redress mechanisms for high-risk automated or data-driven decisions, ensuring that data use respects due process, equity, and public trust across the data lifecycle.

Policy Objective 4.2: Strengthen sovereignty, and rights-preserving safeguards for high-risk data environments and permanently sensitive datasets in data lifecycle. This objective fills gaps in governing data storage, retention, usage, and rights preservation for large-scale, continuous, and immutable data from emerging technologies. In order to achieve this objective, the following interventions will be implemented:

4.2.1 Develop a guideline to strengthen governance for high-risk hosting, cross-border processing and long-term confidentiality. These guidelines will require data location mapping, residency compliance, clarity in provider responsibilities, provision of controls against unauthorized reuse, DGET-aligned security standards, as well as post-quantum cryptography (PQC) readiness through crypto-agile design, impact assessments and procurement requirements.

4.2.2 Standardize privacy-by-design and governance in data lifecycle for continuously collected, sensor-generated, immutable, and permanently high-risk datasets. Issue unified guidance requiring inventories of continuously collected and embedded data sources, lifecycle controls from collection to deletion, minimization of data capture, limits on storage, transparency and user controls, and strict access and audit logging, while applying enhanced safeguards to datasets where correction, erasure, or long-term risk management is constrained (including genomic, biometric, and similar high-risk data).

4.5 Data Culture, Human Capacity and Change Management

4.5.1 Policy Gaps

Kenya has poor data culture across both the public sector and the general citizenry. While efforts of the Office of the Data Protection Commissioner are beginning to bear fruit regarding personal data protection awareness, knowledge of data rights and data literacy in general remains low among citizens and organizations. There is no systematic effort to build data literacy within the private sector. Some policy makers make decisions that are not data-driven

. This is compounded by cultural and trust issues: citizens are reluctant to share data with the government due to perceived misalignment of interests, low transparency, and insufficient disclosure about how their data will be used.

Citizens do not understand and exercise their data rights due to low awareness and inaccessible information. Low digital and data literacy among community members and local officials, poor understanding on consent management, data security and data ownership and subject data rights. While the Data Protection Act, 2019 establishes privacy-focused rights such as access, rectification, and erasure of personal data, this awareness gap extends to created content, protection of indigenous and cultural data, and rights to access government-held information. Additionally, citizens have low understanding of how their personal data is aggregated, anonymized, and transformed into non-personal datasets for public services, research, statistical purposes, and commercial activities. This information asymmetry creates power imbalances between data subjects and data handlers.

Citizens have low awareness on exercising their data rights, including accessible procedures for Data Subject Access Requests, complaint channels, ability to opt-in or opt-out of analytics beyond core service delivery, transparent information about who is accessing their data and for what purpose. Unlike jurisdictions such as the United States, Germany, and the Netherlands that have invested in building data-valuing cultures, Kenya is yet to put in place coordinated efforts including national campaigns to position data as a strategic asset.

Exclusionary public participation processes that prioritize geographical coverage over true demographic representation leads to policies that do not reflect public concerns and deepens the negative perception of data related policy development as a whole.

Accountability and trust deficits further undermine citizen confidence in government data systems. There are no clear accountability frameworks defining responsibilities and consequences for data handlers and holders across government, nor are there enforceable mechanisms that mandate remedies when citizen data is used beyond original consent. Government agencies are yet to put in place mandatory public reporting systems that would demonstrate the tangible connection between citizen data collection and improved service delivery, leaving citizens unable to see how their data contributes to public good. There are no effective frameworks for public-private data collaboration for public benefit in key sectors such as transport, health, or agriculture, and no benefit-sharing mechanisms that would protect commercial interests while advancing public welfare.

Absence of harmonization of legal instruments that establish public institutions hinders data sharing and collaboration across agencies. There is no institutional coordination mechanism to enable cross-agency collaboration on data governance matters. Poor organisational culture as well as silo practice in data management within the government presents further barriers. This practice largely emanates from weak executive support and political leadership for data governance initiatives.

The absence of comprehensive change management strategies fails to provide structured interventions to address entrenched attitudes through Data Champions Programme and mechanisms to recruit early adopters, as well as incentives to encourage behavior change. Data governance competencies are not embedded in performance contracts or career progression pathways and thus there are no obligations to contribute to data quality or participate in interagency sharing, and accountability for data stewardship. Without performance

measurement frameworks for data governance, there is little accountability or incentive for behaviour change. Strong change management interventions and visible political buy-in from senior leadership is key to address the fragmented and siloed data management.

Cultural deficits undermine the potential for integrated service delivery, evidence-based policy making, and public trust in government data systems. Addressing these cultural deficits requires sustained investment in awareness, training, leadership engagement, and accountability mechanisms that place the citizen, rather than the data itself, at the centre of governance philosophy.

With respect to human capital, the current levels of digital and data literacy among citizens and communities are insufficient to foster a trusted data environment. The public has low understanding of fundamental data safeguards. More critically, they are disempowered by the absence of functional mechanisms to audit data access, understand its purpose, and report potential breaches. This gap undermines transparency and public confidence.

Within the public and private sectors, data literacy is not yet an organizational-wide competency. Understanding is often limited to specialized data roles, creating a significant barrier to the adoption of data governance frameworks. When executives and operational staff lack foundational data literacy, they cannot effectively implement, comply with, or champion data governance policies, rendering them ineffective

A critical barrier to robust data governance is the widespread inadequate number of skilled professionals. This skills gap spans the entire data lifecycle—from managing infrastructure (architecture, engineering) to ensuring responsible data use (governance, ethics, and AI). Without a qualified workforce and clear professional standards, data governance policies cannot be implemented effectively, exposing organizations to significant risks and missed opportunities.

4.5.2 Policy Objectives and Interventions

The first policy objective is to address the absence of a sustainable data-literate culture across the public sector, the private sector, the educational system, and the general public to effectively understand, use, and govern data for digital sovereignty, improved public services, and inclusive economic growth. The policy objective to address this policy issue is:

Policy Objective 5.1: Establish a sustainable culture of data literacy and continuous learning. This will empower all stakeholders, including public and private sector employees and executives as well as the general public, to effectively understand, use, and govern data. In order to achieve this objective, the following interventions will be implemented:

5.1.1: Implement tiered data literacy programs in private sector organizations and foster cultural change to embed data-driven approaches.

5.1.2: Integrate data literacy and ethics training into public service. This will involve the development of training curriculum presented through government training institutions for officials at all levels, including implementing a training-of-trainers model to ensure life-long learning.

5.1.3: Launch a national public digital and data literacy and ethics campaign. The aim of the campaign is to build public understanding of data's importance, uses, opportunities, and risks in improving both public and private sector services and driving economic growth. These campaigns will also be designed to inform citizens of their data rights, including access, use, rectification, erasure, and security. These programs will aim to increase understanding of how their data is aggregated, anonymised and used as non-personal data for public benefit, research, statistics and commercial purposes. Accessible educational materials explaining data rights in plain language will be created.

5.1.4: Integrate digital and data literacy and ethics into educational curricula at primary, secondary and tertiary levels. This will empower future generations to effectively participate in the data economy.

Policy objective 5.2: Build a sustainable and skilled data governance workforce. This will be done by establishing clear professional standards, expanding specialized training pathways, and incentivizing continuous skill development across the public and private sectors. This will lead to improved service delivery, data-driven decision-making, and reduced risk from data mismanagement. In order to achieve this objective, the following interventions will be implemented:

5.2.1: Design and implement a program to accelerate pathways for data governance professionals. This will involve working with higher education institutions and private sector trainers, establishing professional standards and launching a nationally-recognized certification framework in data governance, privacy and ethics. It will also encompass mandating existing professional bodies to create continuing professional education (CPE) courses on data practices and data governance for their members.

5.2.2: Design and implement a program to build the capacity of all public sector data governance officers. For the national government, this can be achieved by establishing targeted data governance courses at the Kenya School of Government. The counties will work with private sector trainers as well as higher education institutions to access targeted courses to meet the needs of their data governance officers.

5.2.3: Devolve implementation by providing targeted training to county governments to lead data literacy and facilitate multi-stakeholder data sharing frameworks at the local level. The county governments are best placed to provide data literacy training to citizens and facilitate data sharing with stakeholders at the local level.

Policy Objective 5.3: Build and sustain citizen trust in Government data systems through accountability and transparency. Empowering citizens with effective mechanisms for exercising their data rights on both personal and non-personal data, and holding data handlers accountable, with particular attention to vulnerable and marginalized groups. In order to achieve this objective, the following interventions will be implemented:

5.3.1: Establish comprehensive accountability frameworks for data handlers and holders across public and private sectors. These frameworks will define responsibilities and consequences for misuse or breach of data subject rights, mandate remedies when citizen data is used beyond original consent, and establish penalties for non-compliance.

5.3.2: Establish awareness of mechanisms for data subjects to exercise their rights and digital self-determination. Establish mechanisms including clear procedures for Data Subject Access Requests and accessible complaint channels through the relevant data regulators and relevant authorities. The mechanisms will also include the ability for citizens to opt-in and opt-out of analytics beyond service delivery, as well as enabling data subjects know their rights.

5.3.3: Promote mandatory public reporting systems. Promoting utilization of mandatory systems supports effective connection between citizen data collection and improved service delivery across government agencies thus demonstrating the value of sharing data.

5.3.4: Develop inclusive access policies and specific data protections for marginalized and vulnerable groups. Frameworks for ethical collection and use of cultural data from different ethnic groups will be made and specific training for Data Stewards on handling data from vulnerable populations mandated.

5.3.5: Establish a formal, meaningful and ongoing public participation process for data governance and policy development. Establish mechanisms to promote participatory governance process by ensuring demographic representation beyond geographical coverage while enabling diverse citizen voices including vulnerable and marginalized groups to shape data policies and hold data handlers accountable.

Policy Objective 5.4: Implement comprehensive change management to transition Government to collaborative and data-driven decision-making practices.

In order to achieve this objective, the National Government will implement the following interventions:

5.4.1: Develop a structured government-wide change management strategy to address entrenched attitudes and institutional resistance to data sharing. This will include establishing a Government Data Champions Programme that recruits early adopters across agencies to mentor colleagues and demonstrate data-driven decision-making benefits. Champions will receive specialized training, direct access to senior leadership, and recognition through accelerated promotion pathways and job secondment to leading data-driven organizations.

5.4.2: Embed data governance competencies into performance contracts at all levels. This will be achieved by requiring public servants to demonstrate data-driven practices in performance appraisals (such as using data in reports, contributing to data quality, participating in interagency sharing), linking career progression to data stewardship responsibilities, and establishing data excellence as a criterion for senior appointments.

4.6 Data Sharing, Exchange and Value Creation

4.6.1 Policy Gaps

The current data sharing environment is fragmented within the public sector compared to the private sector, where the majority of organizations report having some form of data governance policy, even though not guided by a national data governance framework. Administrative data is not routinely shared through formal agreements, as many institutions still rely on informal, manual channels such as emails and shared drives. Government systems are largely non-

interoperable, creating duplication, delays, and weak data reuse within MDAs and between national and county government levels. This problem is exacerbated by the fact that the laws that created most MDAs were not designed with data sharing in mind, resulting in silos.

There is a lack of harmonised national standards and shared data infrastructure to make data exchange seamless. At the same time, there is no consolidated national data repository or exchange platform for government datasets, meaning assets remain scattered across agencies with inconsistent metadata, definitions, classifications, labelling and identifiers. Additionally, data quality assurance frameworks are not uniformly applied, so even when data is exchanged, it may be incompatible, incomplete or unreliable. These weaknesses make dissemination overly technical and difficult for many users to interpret or reuse, therefore limiting public value.

Kenya currently lacks comprehensive frameworks with safeguards for public, private, and cross-border data exchanges, limiting public-good use of private data and slowing cloud adoption and international collaboration. Public-private sharing is happening in isolated cases (such as Credit Reference Bureaus), but without a nationally standardized model to enable repeatable exchanges across priority sectors. For cross border transfers, there are unclear policies on data residency and localization where this uncertainty discourages cloud adoption, international partnerships and intra-Africa data collaboration.

Finally, the policy environment is weak on accessibility and on the economic positioning of data. Data sharing policies are often technical, English-only and not treated as living/rolling documents that evolve with public input, which limits citizen understanding and trust. Kenya also lacks a coherent national framework for data valuation, ownership, licensing and monetization. There are no standardized pricing or revenue models, unclear Intellectual Property (IP) and benefit sharing rules for derived data products or AI training uses and limited ethical safeguards for monetizing sensitive datasets. Ministries also lack harmonized approaches, preventing the emergence of credible national data markets.

4.6.2 Policy Objectives and Interventions

Policy Objective 6.1: Govern cross-border and high-value data exchanges. As data sharing scales to include innovation and cross-border flows, a distinct layer of governance is needed to manage economic value, sovereignty, and complex multi-party exchanges. In order to achieve this objective, the following interventions will be implemented:

6.1.1: Define and implement risk-based data residency and cross-border flow for non-personal data. DGET will establish the categories of non-personal data by risk level. Critical infrastructure and strategic economic data must remain in-country; non-sensitive data shall enjoy a presumption of free flow, subject to adequate trust, transparency and reciprocity safeguards. Standardised cross-border data-sharing templates and approval workflows shall be published with government-led pilots in selected sectors before a national rollout. The rules shall align with the AU Data Policy Framework and AfCFTA Digital Trade Protocol and undergo periodic review.

6.1.2: Define frameworks for structured data collaboration and sharing involving government, private sector, SMEs, CSOs, and community organizations for non-personal data. Establish standardized frameworks enabling diverse stakeholders- including large private sector entities, small and medium enterprises (SMEs), civil society organizations (CSOs), research institutions, community-based organizations, and cooperatives to share non-personal

data (e.g. mobility, transaction, agricultural, environmental, health system) with government for public good, under clear terms on use, retention, security, and publication. Reciprocal terms shall govern government data access by the private sector SMEs, CSOs, research institutions, and community organizations for innovation, service delivery, advocacy, research, and commercial development under appropriate licenses that reflect organizational capacity and purpose. For mixed datasets containing personal and non-personal elements, coordination protocols with ODPC shall ensure proper handling, with anonymised or aggregated derivatives subject to ODPC guidance on anonymisation adequacy.

Policy Objective 6.2: Establish a coherent national framework that enables lawful data valuation, structured data exchange and ethical data monetization. This will ensure compliance with existing laws, protecting rights and public interest, and supporting innovation, and research. It is important to recognise data as an economic asset and factor of production, while acknowledging that data markets and monetization models are diverse, evolving and often already operating in practice. In order to achieve this objective, the following interventions will be implemented:

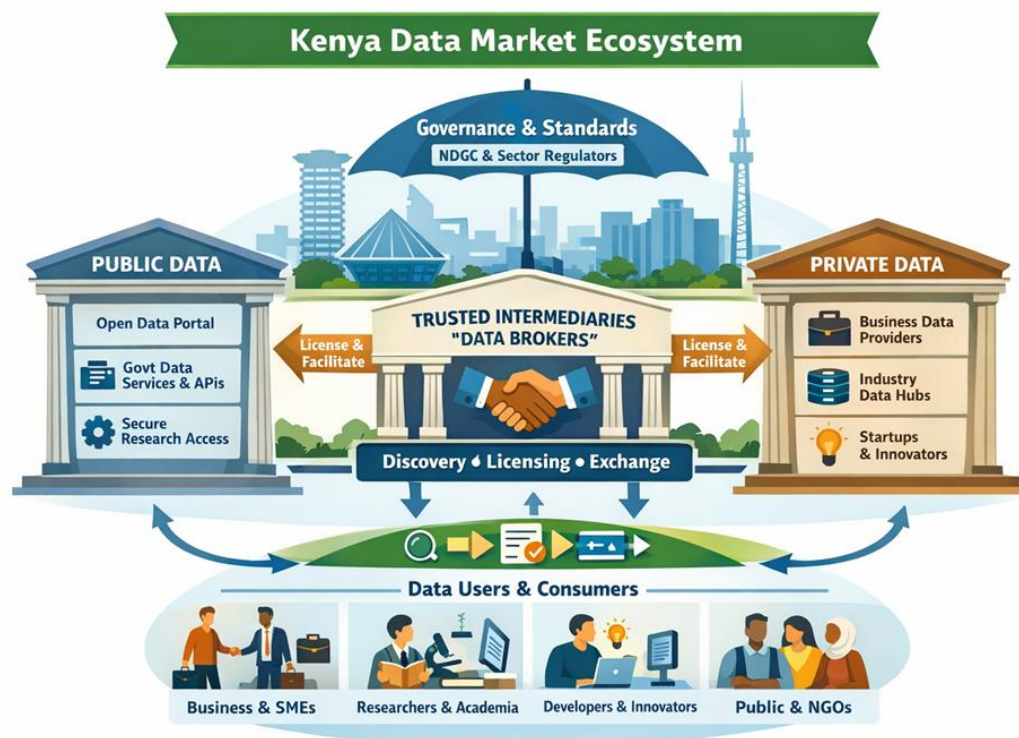
6.2.1: Define lawful data value creation models, roles, and revenue treatment in the data market ecosystem based on data classification and categorization. Establish classification frameworks distinguishing data by sensitivity levels (open, restricted, confidential, top secret), categorization by type (administrative, operational, research, strategic), and purpose of use (public good, commercial, research, mixed-use) as foundational determinants of permissible monetization approaches. Define methodologies for valuing data assets across economic, public good, and strategic dimensions with valuation criteria varying according to data classification and category to guide appropriate data investment, pricing and return measurements. National governance rules shall define permissible monetization models for on-personal data-including subscription, per-use, data-as-a-service, and derived product licensing-providing clarity for innovators, researchers, and investors. Clear intellectual property rules shall govern data products, aggregated datasets, derived insights, and AI models trained on public data, with benefit-sharing mechanisms ensuring fair public returns from commercial value creation.

6.2.2: Establish a data marketplace by law. Consult stakeholders to establish a national marketplace for the lawful exchange of non-personal, anonymised, and aggregated datasets in the public sector, private sector, research institutions, and civil society. The marketplace shall define clear licensing models, pricing tiers-including free access for public good uses and transparent revenue treatment for government data. Data intermediaries, brokers, and marketplace operators shall be registered and subject to regulatory oversight ensuring transparency, fair dealing, and compliance with data governance standards. Operating rules shall embed ethical safeguards, including risk-based accountability for high-impact data, fair competition rules preventing dominance through data hoarding, and prohibitions on monetising sensitive aggregated data that could enable discrimination or harm.

6.2.3: Develop and enhance government data products for increased value realization. Government shall transition data dissemination toward usable public data products that maximize citizen engagement and public value-including simplified dashboards, multilingual summaries, machine-readable formats, and thematic datasets aligned with national priorities. Products shall be designed with underserved populations in mind to ensure equitable access. Supporting tools shall enable SMEs, community organisations, and citizens to discover,

interpret, and reuse government data, translating open data commitments into measurable public value. Figure 4.1 shows the Kenyan data market ecosystem.

Figure 4.1: Illustration of the Kenyan data market ecosystem



5. Policy Implementation Framework

5.1 Coordination Framework and Administrative Mechanisms

5.1.1 National Data Governance & Emerging Technologies (DGET) Council

Given the dependency of emerging technologies on data, it is important that these technologies are governed together with data. In line with the recommendations of the Sectoral Working Group, this Policy will establish an independent coordination Council – the National Data Governance & Emerging Technologies Council (DGET Council). The Council will be created by a law to oversee data governance policy harmonization and ensure impartial oversight over data and coordinate with lower level data units in MCDAs. The Council will be chaired by the Principal Secretary, State Department for ICT and the Digital Economy and includes the following representatives of public sector entities:

- a) 7 permanent member State Departments in charge of ICT, Data Governance and Emerging Technologies; Economic Planning; Defense; Interior and National Administration; Immigration and Citizen Services, Devolution; and National Treasury.
- b) Chair of Council of Governors (CoG) as a permanent member.
- c) 3 rotational member State Departments, starting with: Medical Services, Higher Education and Research, and Agriculture. The Council will choose another three state departments to replace these after serving two 3-year terms.

The key responsibilities of the Council shall be to:

- a) Set the strategic direction, coordinate and align data governance initiatives with national priorities, approve initiatives and allocate resources;
- b) Ensure that data-holding ministries, agencies, counties and private sector entities are complying with data governance policies, standards and guidelines;
- c) Provide oversight of data lifecycle management of key datasets and programmes in public service;
- d) Guide, monitor and evaluate the implementation of the data governance policy and resolve data ownership conflicts among MDAs and between National Government and County Governments;
- e) Create Technical Committees and Sector Working Groups to address specific technical domains; and
- f) Maintain and enforce data quality standards, providing critical oversight for data infrastructure management.

5.1.2 National Multi-Stakeholder Steering Committee

The DGET Council will coordinate via a National Multi-Stakeholder Steering Committee (Steercom) with representation from public sector, private sector, academia, and civil society. These include ten (10) State Departments (7 - permanent members and 3 rotational members as outlined above), CoG (1), ODPC (1), KNBS (1), Academia (2), Private Sector (4) and Civil Society (1).

DGET shall establish specialised Sector Working Groups (SWG) to link up with sector-based data governance structures, e.g. in Health, Agriculture, Education, Earth Observation, etc. These SWGs will help coordinate data governance policy implementation in specific sectors.

5.1.3 National Data Governance Office in the National Government and the CoG

This Policy will strengthen the current Data Governance Directorate in the State Department in charge of data governance to become the Data Governance Office (DGO) at the level of a Secretary. It will be headed by a National Chief Data Officer (CDO) and will be the operating arm of the DGET Council and offer Secretarial Services to the Council. DGO will be responsible for day-to-day management of public sector data assets to realize the value of data within the public sector. It will also be responsible for supporting data sharing among governmental entities as well as with other non-government entities.

The key functions of the DGO include the following:

- a) Implement and coordinate data governance architecture, institutions and tools across the national data value chain;
- b) Together with sector working groups, develop and maintain guidelines and standards for data interoperability and data exchange;
- c) Implement and own the National Master Data Management in consultation with primary data custodians;
- d) Coordinate Data Governance Officers across MDAs and implement their capacity building;
- e) Stimulate data demand through the establishment of data exchange and data sharing infrastructure to unlock the strategic value of data held by both government and private sector; and
- f) Provide secretariat support to the DGET Council.

The CoG shall establish a similar data governance office to coordinate the implementation of data governance policy in County Governments. Other functions of this office are to address data custodianship arrangements for county-generated data, and resolve data ownership conflicts between the National Government and County Governments through the DGET Council.

5.1.4 Data Offices in MDAs and Counties

The State Departments and Agencies will appoint qualified Data Governance Officers. These offices will work closely with other MDA officers who have a data responsibility, including the KNBS officers. These officers will work under the guidance of the Data Governance Office. The responsibilities of the Data Officers will include identifying datasets from their respective organizations and sectors to be shared on the national data portal, organizing and sharing key datasets from the organizations and sectors they represent on the national data portal, and working with and facilitating the work of the Data Governance Office in their organizations.

The County Governments shall establish County Data Offices to lead the implementation of data governance programmes at county level. In addition, the County Data Offices shall be established in counties to lead grassroots data collection, verification, data awareness campaigns, and community engagement. The County Governments shall also establish County Committees to coordinate data governance and emerging technology policy implementation in the respective sectors in counties.

The proposed institutional framework will be an interim measure for the first five years. The long term vision of this Policy is to transform Data Governance Office (DGO) into a Data Governance Agency (DGA). The DGA will have its structure federated into MDAs and Counties.

5.2 Legal and Regulatory Framework

Kenya's data governance landscape is shaped by a range of existing legislative instruments characterised by fragmentation, overlapping mandates, and significant gaps, particularly regarding non-personal data.

5.2.1 Existing Laws Requiring Alignment and Review

Multiple laws govern various aspects of data in Kenya. The Data Protection Act, 2019 (Cap. 411C) and its associated regulations form the cornerstone of personal data protection. Other key legal instruments include the following:

- Statistics Act, 2006 (Cap. 112);
- Access to Information Act, 2016 (Cap. 7M);
- Computer Misuse and Cybercrimes Act, 2018 (Cap. 79C);
- Kenya Information and Communications Act, 1998 (Cap. 411A);
- Consumer Protection Act, 2012 (Cap. 501);
- Sector-specific regulations, including the Central Bank of Kenya Prudential Guidelines and the Health Act, 2017 (No. 21 of 2017); and
- Copyright Act, 2001 (Cap. 130), Industrial Property Act, 2001 (Cap. 509), and the Protection of Traditional Knowledge and Cultural Expressions Act, 2016 (Cap. 218A), particularly regarding intellectual property rights in datasets and the treatment of traditional knowledge and cultural expressions as data assets.

Key gaps across this legislative landscape include:

- Lack of overarching framework for non-personal data (including anonymised, statistical, administrative, research, and IoT-generated data).
- No clear institutional mechanism for cross-sectoral data governance coordination.
- The FAIR principles (Findable, Accessible, Interoperable, Re-usable) are yet to be adopted.
- No categorisation of strategic data assets.
- Standardised protocols for inter-agency or public-private data sharing are missing; and
- Lack of safeguards against dark (opaque) patterns that undermine informed consent.

A comprehensive legal audit is needed to map these gaps and inform the harmonisation process.

5.2.2 Laws and Regulatory Frameworks Supporting Implementation

Several existing instruments provide a foundation for this Policy:

- **Digital Health Act, 2023 (No. 15 of 2023):** Treats health information as a national asset and establishes an interoperable governance model for health data.
- **Protection of Traditional Knowledge and Cultural Expressions Act, 2016 (Cap. 218A):** Offers frameworks for collection, curation, and preservation relevant to data governance.

- **Virtual Asset Service Providers Act, 2025 (Act No. 20 of 2025):** Incorporates data protection compliance requirements that can inform approaches in other sectors.
- **National Digital Masterplan 2022–2032 and National Cyber Security Strategy 2022–2027:** Provide strategic foundations for connectivity, digital infrastructure, and security.

5.2.3 Domestication of International Conventions and Treaties

This policy framework aligns with the following key international instruments:

- General Data Protection Regulation (GDPR) standards;
- APEC Privacy Framework and Cross-Border Privacy Rules System;
- ISO/IEC 27001 for information security standards;
- NIST Privacy Framework for risk-based governance; and
- FAIR principles (Findable, Accessible, Interoperable, Re-usable) for data utilisation.

At the regional and continental level, key instruments relevant to this Policy include:

- EAC Data Governance Framework (validated in 2024);
- African Union Data Policy Framework (2022);
- AfCFTA Protocol on Digital Trade (2023); and
- Malabo Convention on Cybersecurity and Protection of Personal Data (in force since June 2023).

Section 48 of the Data Protection Act, 2019 (Cap. 411C) requires amendment to facilitate regional data flows in line with these commitments. Kenya also needs to complete its ratification of the Malabo Convention.

5.2.4 The Proposed Data Governance Law

This Policy proposes the enactment of a comprehensive Data Governance Law to serve as the overarching legal framework for Kenya’s data governance landscape. The key areas the Data Governance Law is expected to address include:

- **Governance structure:** Establishment of the National Data Governance and Emerging Technology Council as the apex coordinating body, with a mandate covering legislative review, resolution of jurisdictional conflicts between regulators, and cross-government data policy coordination.
- **Non-personal data framework:** Definition and categorisation of non-personal data (including anonymised, statistical, IoT-generated, open government, and research data), adoption of FAIR principles, and categorisation of strategic data assets.
- **Data property rights:** Recognition of data as a factor of production, with default property rights frameworks addressing origination, collection investment, value-addition, and multi-party data relationships.
- **Data marketplaces:** Enabling frameworks for data commerce, including dataset listing standards, licensing terms, consumer protection, intermediary liability, and regulatory sandboxes.
- **Cross-border data transfers:** Safeguards aligned with AU, EAC, and AfCFTA commitments.
- **Institutional coordination:** Mechanisms for coordination between the Council, the Office of the Data Protection Commissioner, the Communications Authority of Kenya, and sector regulators.

- Adaptive governance: Provisions for periodic policy review and technology assessment to ensure the framework remains responsive to technological change.

The detailed rules, standards, and procedures for each of these areas are to be elaborated through subsidiary legislation and regulations made under the Data Governance Law.

5.3 Funding Arrangements

One of the key challenges is the insufficient budget allocation for data governance initiatives across various institutions or the lack of dedicated budget allocation for data governance in others. The funding for the implementation of the National Data Governance Policy will be primarily sourced from domestic government revenue. This includes domestic resource allocation by the National Treasury, infrastructure funds and ST&I budget allocation. In addition, each MDA will allocate budgets to implement their component of the data governance policy. The funding by GoK is predicated on the recognition that data is a strategic national asset, akin to vital natural resources or critical infrastructure. Primary government funding is essential to safeguard national sovereignty, ensure that data governance priorities align exclusively with the nation's strategic interests, and prevent any potential misalignment that could arise from external funders pursuing their own agendas. This mirrors the strategic stance taken by countries like India, which has largely internally funded its India Stack digital public infrastructure to maintain control over its digital destiny. Furthermore, domestic funding provides a more sustainable and predictable fiscal pathway, reducing reliance on the fluctuating priorities of external donors and avoiding the accumulation of sovereign debt that can come with extensive borrowing for technical assistance.

Consequently, the government will fund all the key policy interventions. This substantial allocation will cover the operational costs of the new institutional structures established to coordinate the implementation of the policy, including salaries and allowances for the National Data Governance & Emerging Technologies Council and its secretariat. It will also finance the requisite foundational ICT infrastructure, monitoring and evaluation, capacity building, robust cybersecurity measures to protect national data assets, and the development of critical, sovereign data infrastructure and platforms, such as a national data exchange, sectoral data exchange platforms or federated data systems. Additionally, this funding will be allocated to institutionalise data governance roles into permanent structures through the Public Service Commission, ensuring these roles are not project-dependent but rather embedded within the operational fabric of government institutions.

Part of the public funding for data governance initiatives will come from monetization of public data.

International partners however will play a crucial, albeit targeted, role in complementing the national resource allocation. This group includes official development assistance (ODA) from bilateral agencies and multilateral agencies, and other UN agencies. These entities will provide technical assistance and fund specific, discrete projects that align with both the government's priorities and their own strategic interests or thematic mandates. External partners may also support catalytic interventions such as advanced technical data governance training, international best practice exchanges and pilot projects for emerging technologies.

In order to ensure sustainability of funding of data governance at the County level, it is important that data governance requirements and budgets are integrated into existing county planning and budgeting instruments.

Finally, Non-State Actors (NSAs) will provide highly targeted and catalytic funding to address specific gaps or spur innovation. The private sector is also a key for resource mobilization. This includes direct investment in PPP projects, for example, partnering with the government to build and operate a secure national data cloud facility or funding specific demonstration projects.

5.4 Monitoring, Evaluation and Learning

Kenya has not explicitly recognized data as a strategic national asset. There is some coordination within specific sectors (e.g. Banking/Financial Sector, Health, Telecoms and ODPC for personal data) with their own independent governance structures which have been embedded into their operations. The coordination of data at a national scale is however fragmented. This disjointed coordination has made it hard to manage data well, which has led to waste and missed chances for growth and public value. A monitoring and evaluation (M&E) plan is necessary to institutionalize coordination across MDAs, standardize how evidence is generated, and ensure that valuable data is properly collected, stored, shared, and used responsibly. The plan becomes the operating backbone that translates policy commitments into day-to-day practice by setting up common indicators, processes for checking data quality, and feedback loops for learning. It also makes clear the multiple roles and duties that M&E needs, so that executives, technical teams, and partners know what they need to do and how their work fits together.

This section presents mechanisms for data collection, analysis and storage; provides the baseline values, indicators and targets that will be used to measure the policy implementation progress; and provides a mechanism to monitor whether policy objectives are being implemented and outcome targets are being achieved within the specified timeframe. The Policy M&E Matrix is shown in Annex 4. It shows the expected outcomes; the indicators that will be used to measure effectiveness, coherence, impact and sustainability of policy implementation; the mid-term and end-term targets; the sources of evidence to support policy outcomes and impact; and the frequency of the various data to be collected.

The policy implementation will begin in FY 2026/27, with quarterly monitoring to track progress. Three years after commencement, an implementation review will take place, followed by a mid-term evaluation at the five-year mark. This mid-term evaluation will assess the policy's impact against the outcomes and targets outlined in the implementation matrix, including compliance with policy governance. It will also review the proposed institutional framework to determine whether a transition into a Data Governance Agency should be pursued. To ensure objectivity, the mid-term evaluation should be conducted by an external evaluator. Both the implementation review and the mid-term evaluation reports will identify intended and unintended consequences, as well as positive or negative effects of the policy, offering lessons to adjust the implementation matrix for the remainder of the policy's term. These reports will be shared with policymakers, key stakeholders, and the public, thereby reinforcing public trust in the Government. Finally, the end-term evaluation report will inform the first substantive revision of the policy.

5.5 Risk Analysis and Mitigation

This section identifies, describes and categorizes the risks that may hinder the realization of the goal of the National Data Governance Policy. The risks have been categorized and prioritized based on the likelihood of occurrence and expected impact with suggested actions for mitigation, monitoring and reporting of those risks. The Likelihood (L) parameter, which quantifies the chances of a risk event occurring, is operationalised at three levels: 1 – Low; 2 – Moderate; 3 – High. Similarly, the Severity (S) parameter, which represents severity of the risk should it occur, is operationalised at the same three levels: 1 – Low; 2 – Moderate; 3 – High. The Overall Risk Impact (I) is the product of L and S, which could be Low (1/2/3), Medium (4/6) or High (9) as shown in table 5.1.

Table 5.1: Risks Matrix

#	Risks	Key Causes	Likelihood (L=1/2/3)	Severity (S=1/2/3)	Impact (I=L*S) (L/H/M)	Mitigation Measures
1	Slow adoption of policy	Overlapping mandates in MDAs Inadequate awareness of the policy Data Governance Law not enacted	2	3	6 (M)	Addressing overlapping mandates in MDAs Policy is anchored in law Political support for the policy Policy memorandum to parliament committee Awareness of the policy at the adoption level Enhance collaboration between MDAs Presidential public address on the need and impacts of the policy
2	Risks arising from politicization	Inadequate transparency Reduced public trust	2	3	6 (M)	Strengthen multi-stakeholder governance to balance power, ensuring regulators remain independent from executive influence
3	Inadequate financing to implement the policy	Inadequate public resource financing to data governance	2	3	6 (M)	The government budget to prioritize data governance Integrate Data Governance budget lines in all implementing agencies Mobilize resources from development partners, private sector and other non-state actors to complement

#	Risks	Key Causes	Likelihood (L=1/2/3)	Severity (S=1/2/3)	Impact (I=L*S) (L/H/M)	Mitigation Measures
						resources allocated by the National Treasury
4	Capacity and skills gaps	Shortage of skilled personnel	2	3	6 (M)	Recruit staff into the created institutions and roles Build capacity of the staff in the created institutions and roles (at national and county government levels) In consultation with the Public Service Commission, conduct skill gap analysis to inform the recruitment needs of data personnel in the public sector
5	Institutional fragmentation and coordination	Unclear roles, overlapping and siloed implementation	2	3	6 (M)	Strengthen multi-stakeholder governance for effective coordination
6	Resistance and change management	Data sharing, open data, privacy concerns, etc.) by MCDAs, private sector and the public	2	3	6 (M)	Implement the policy interventions in the Data Culture, Human Capacity and Change Management theme in this policy, e.g. for data sharing Conduct ongoing public awareness campaigns Implement incentives for data sharing and privacy-by-design
7	Shifts in government priorities	Government not prioritising data as a strategic asset	2	2	4 (M)	Enact the Data Governance Act that recognizes data as a factor of production
8	Geopolitical risks	Changes in foreign governments' policies or laws that frustrate the implementation of the policy	2	2	4 (M)	Implement data sovereignty provisions of the policy Negotiate diplomatic agreements and manage relations with allies

5.6 Policy Review Interval

The policy will be reviewed at five year intervals given the dynamic nature of the sector, or earlier as technology, policy and legal trends may dictate.

DRAFT

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Annexes

Annex 1: Definition of Terms

Data policy: This is a high-level, strategic document setting the vision for data use. It defines principles, priorities, and ethical considerations. It guides collection, storage, sharing, and use of data. The focus here is on long-term direction, fostering innovation, skills, and data sharing.

Data governance policy: Provides the “how” of managing and using data. It ensures data availability, quality, integrity, and security. It defines roles, responsibilities, and accountability structures and establishes trust, legal clarity, and mechanisms for collaboration.

Data Catalog (Inventory Layer): A centralized, searchable inventory of all data assets across the organization including databases, tables, datasets, files, reports, and pipelines. It captures rich technical, operational, and business metadata to enable easy discovery, understanding, and governance of data. By breaking down data silos, it promotes self-service access and trust. Modern AI/ML-powered catalogs automate scanning, metadata extraction, enrichment, profiling, and continuous updates at scale.

Data Classification (Security Layer): The process of organizing data into sensitivity levels typically including; Public, Internal, Confidential, and Restricted, based on its value, risk, and regulatory requirements. It is driven by compliance obligations, risk assessments, and Data Protection Impact Assessments (DPIA). Classification determines appropriate protection controls, access rights, and whether data is eligible for open sharing or must remain protected. Common techniques include content-based (scanning actual data), context-based (using metadata such as source or location), and user-based tagging.

Data Categorization (Logical / Usability Layer): The process of grouping classified datasets into logical, user-friendly categories to improve navigation and usability. Datasets are organized by business dimensions such as sector (e.g., health, agriculture, finance), data format (CSV, JSON, Parquet), time period, or department. Sector-based (functional) categorization is especially valuable for open data portals and citizen-facing platforms, as it makes data more discoverable and meaningful for end users.

Data sharing: The act of giving or making data available to another person, organization or system so it can be used for a stated purpose. Data sharing should follow agreed rules of privacy, security and consent.

Data interoperability: the ability of different systems or organisations to exchange data and use it easily and without confusion as they follow compatible formats and standards. For example, health, education, and civil registration systems can communicate with each other by using the same formats.

Open data: Data that is made freely available to the public for anyone to access, use and share, without restrictions. Open data should be provided in a way that is easy to find and reuse, and must not reveal private or confidential data/information.

Data standards: agreed-upon rules for how data is collected, formatted, named, stored, and shared to ensure consistency, accuracy and ease of use across different users and systems. Standards reduce mistakes and make data easier to combine and compare.

Data integrity: The assurance that data remains accurate, complete, reliable and not altered or destroyed in an unauthorised manner throughout its life cycle, so that it can be trusted for decision making. Data with integrity can be trusted to reflect the real situation.

Data labelling: The process of adding clear tags or descriptions to data to show what the data represents, making it easier to understand, search and use correctly.. For example, a patient record may be labelled “Diagnosis: malaria” and Age group: under 5” to support accurate reporting and planning.

Metadata: Data used to manage and use data. Metadata provides information and knowledge on what data is and how to use it. This is information that explains details like the source, date of collection, location, format, ownership and purpose, to support correct understanding and use of that data.. Metadata helps people understand and use data correctly.

Data marketplaces: Platforms or systems where data owners can offer datasets to other parties for access, exchange, licensing, or purchase under defined legal and contractual terms, subject to national laws including privacy protections. It operates like a market, but the product being traded is data.

Data monetization: Lawful and ethical process of generating value or revenue from data, including through sale, licensing, paid access, data-driven services, or using data to improve efficiency and service delivery, while respecting rights under a country's law.

Data sovereignty: The principle that data is governed by the laws, policies and national interests of the country where it is collected, processed or stored; and in the Kenyan context, that the data is subject to Kenya's legal and regulatory framework and protective of citizen's rights.

Annex 2: Flow Charts of the Coordination Framework

The Coordination Framework for national data governance is structured in three tiers, designed to ensure comprehensive strategic oversight, centralized operational execution, and localized implementation across government entities. This structure reflects a federated operating model recognising that, given the size and complexity of government, a single centralised approach to execution is neither practical nor effective. Instead, strategy and standards are set centrally, while implementation is devolved to government entities at the local level, allowing each to execute within their own operational contexts while remaining aligned to a unified national direction.

Hierarchy	Institution	Composition	Key Functions
Tier I: Strategic Oversight (Council)	National Data Governance & Emerging Technologies (DGET) Council and after 5 years National Data Governance & Emerging Technologies Agency	* Council Chair - CS MoICDE * Chair Council of Governors * 7 permanent member State Departments: ICT and Digital Economy, Economic Planning, Defense, Internal Security and National Administration, Immigration and Citizen Services, Devolution, and National Treasury * 3 rotational member State Departments to serve for two three year terms (Medical Services, Higher Education and Research, and Agriculture) - Council to nominate other state departments after end of tenure of rotational members. (*Permanent member of the council)	a) Set the strategic direction b) Ensure that data-holding ministries, agencies, counties and private sector entities are complying with data governance policies, standards and guidelines c) Provide oversight of data lifecycle management of key datasets and programmes in public service d) Guide, monitor and evaluate the implementation of the data governance policy and resolve data ownership conflicts among MDAs and between National Government and County Governments e) Create Technical Committees and Sector Working Groups to address specific technical domains, e.g. open data and coordinate stakeholders within these committees and working groups f) Maintain and enforce data quality standards, providing critical oversight for data infrastructure management
Tier I: Strategic Oversight (Steering Committee)	Steering Committee (Steercom)	Members: Ten (10) State Departments (7 - permanent members and 3 rotational members as outlined in chapter 5), CoG (1), ODPC (1), KNBS (1), Academia (2), Private Sector (4) and Civil Society (1).	a) Provide strategic direction that guides the Council's decision-making and policy oversight. b) Inter-Sectoral Coordination: Serving as a platform for representation from the public sector, private sector, academia, and civil society to ensure the data ecosystem is responsive and trustworthy. c) Policy Harmonization Support: Assisting the Council in harmonizing data governance across diverse sectors and ensuring multi-stakeholder buy-in for national data initiatives. d) Provide secretarial services to the council.
Tier II: Data Standards Oversight	National Data Standards Committee	Chair: Technical Expert from DGC/DGA; Members: Sectoral Reps (e.g. Blue Economy, Health, Agriculture, Education, etc.), International Advisors, Data Scientists	Standards Development: Create/maintain metrics, FAIR integration, MDM guidelines; oversee data sharing rules; conduct audits

Tier II: Open Data Oversight	National Open Data Committee	Chair: Member DGC Members: Private Sector, NGOs, Academia, Reps from IACC, GCDO, CCDO	Responsible for: a) Operational oversight reporting to the DGC. b) Strategic alignment to ensure data is freely available for public access, use and sharing without restrictions (open by default).
Tier II: Implementation Coordination	Inter-Agency Coordination Committee	Chair: Technical Expert from DGC/DGA; Members: Reps from MDAs, KNBS	Collaboration: Facilitate data sharing, resolve silos, ensure interoperability
Tier II: Earth Observation Data Coordination	Earth Observation Data Committee	Chair: Kenya Space Agency; Members: KNBS	Coordinate innovation, resourcing, sourcing, monetisation, and sharing of earth observation data.
Tier II: Partnership Engagement	Public-Private Partnership Forum	Chair: Technical Expert from DGC/DGA; Members: Private Sector, NGOs, Academia	Innovation: PPPs for funding pilots, capacity building, tech adoption
Tier II: Operational Management	Data Governance Office (DGO). This office will be absorbed into the Data Governance Agency (DGA) after 5 years	Strengthens the current Data Management function within MoCDE. Functions at the level of a Secretary. Headed by a Chief Data Officer. Serves as the operating arm of the DGC.	Responsible for the day-to-day management of public sector data assets. Specifically, a) Implement and coordinate data governance architecture, institutions and tools across the national data value chain; b) Develop and maintain guidelines and standards for data interoperability (the Ministry of Health already has such a model); c) Create and manage standards for data exchange; d) Implement and own the National Master Data Management; e) Implement data training across government; f) Appoint and coordinate Data Officers across MDAC's; and g) Stimulate data demand through the establishment of data intermediaries to unlock private sector held data as well as local data held internationally.
Tier III: Implementation (MDAs)	Coordinator: Elected MDA CDO Members: Committees at MDAs, Subject Matter Experts, Data Officers in MDAs	Appointed, or redesignated (with appropriate capacity building) in Ministries, Departments, and Agencies (MDAs). Work closely with other officers having data responsibility. Work under the guidance of the GoK Chief Data Office.	a) Identify data sets from their organizations to be shared on the national data portal; b) Organize and share key datasets; and c) Facilitate the work of the Data Governance Office in their organizations.
Tier III: Implementation (Counties)	Coordinator: Elected County CDO Members: Committees at Counties, Subject Matter Experts, County Data Coordinators, Data Stewards (Sub-County)	Appointed, or redesignated (with appropriate capacity building) in Counties. Work closely with other county officers having data responsibility, including KNBS officers. Work under the guidance of the GoK Chief Data Office.	a) Identify data sets from their organizations to be shared on the national data portal; b) Organize and share key datasets; and c) Facilitate the work of the Data Governance Office in their organizations.

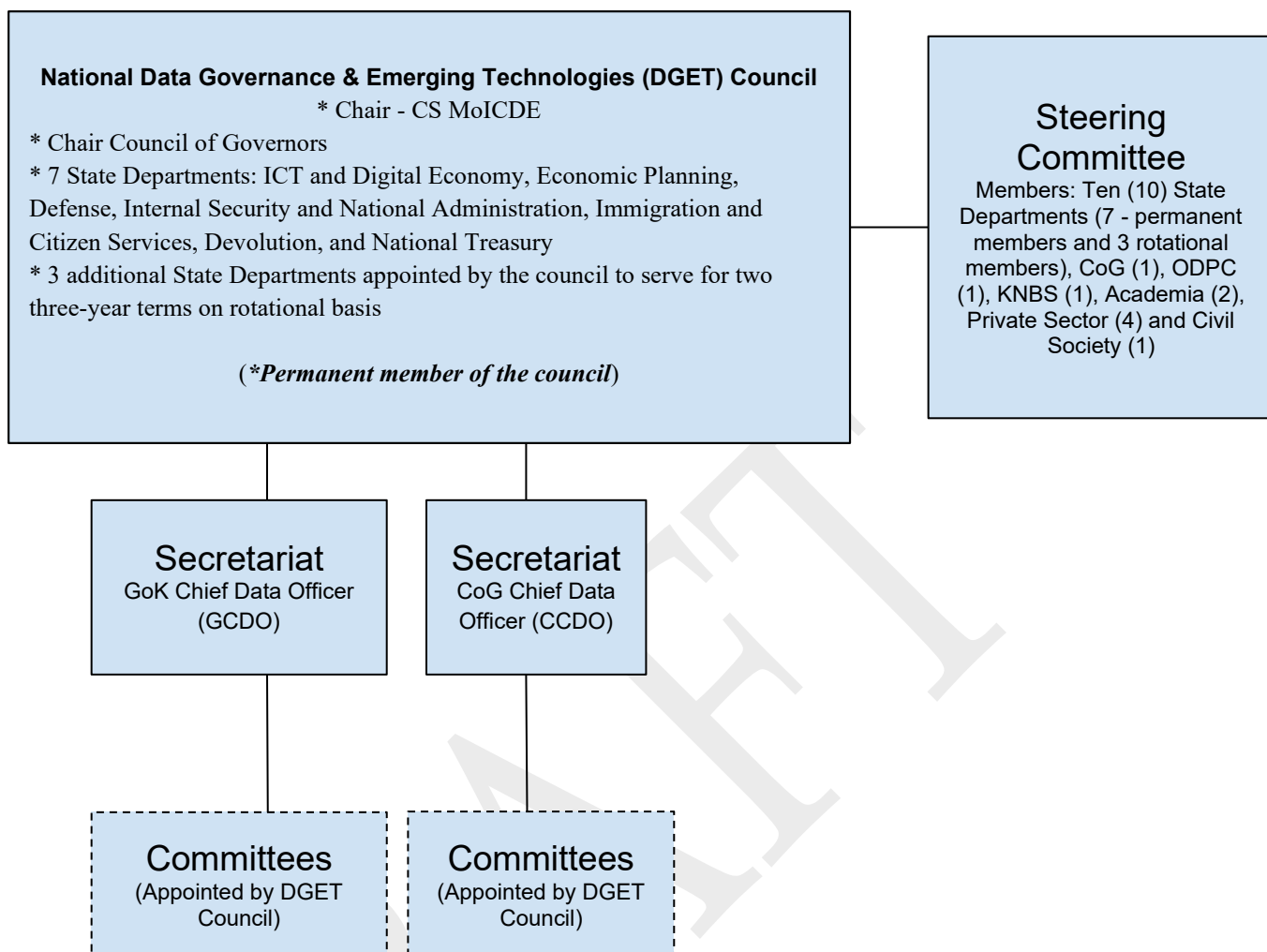


Figure 1: National Data Governance & Emerging Technologies Coordination Framework

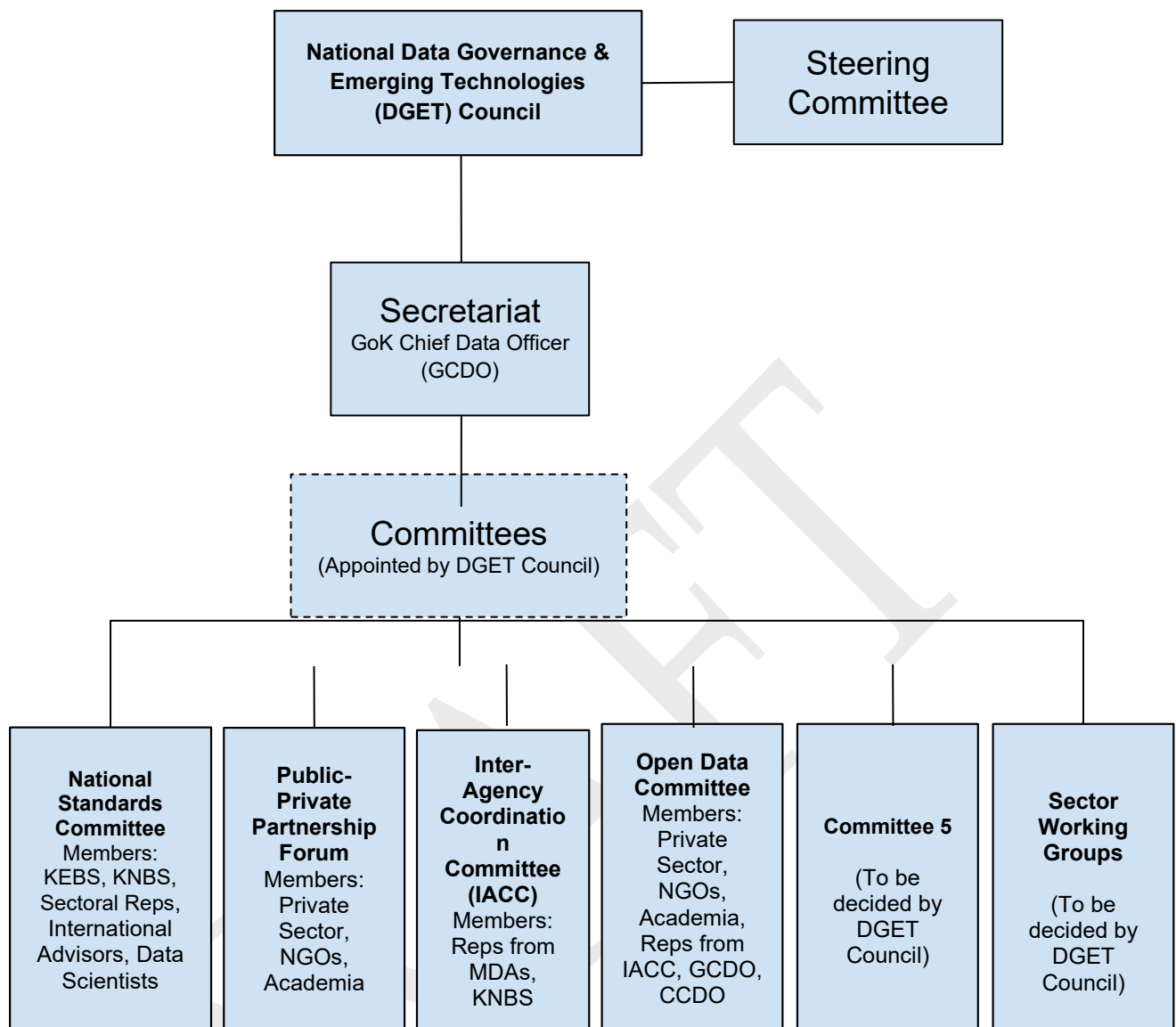


Figure 2: National Government Secretariat

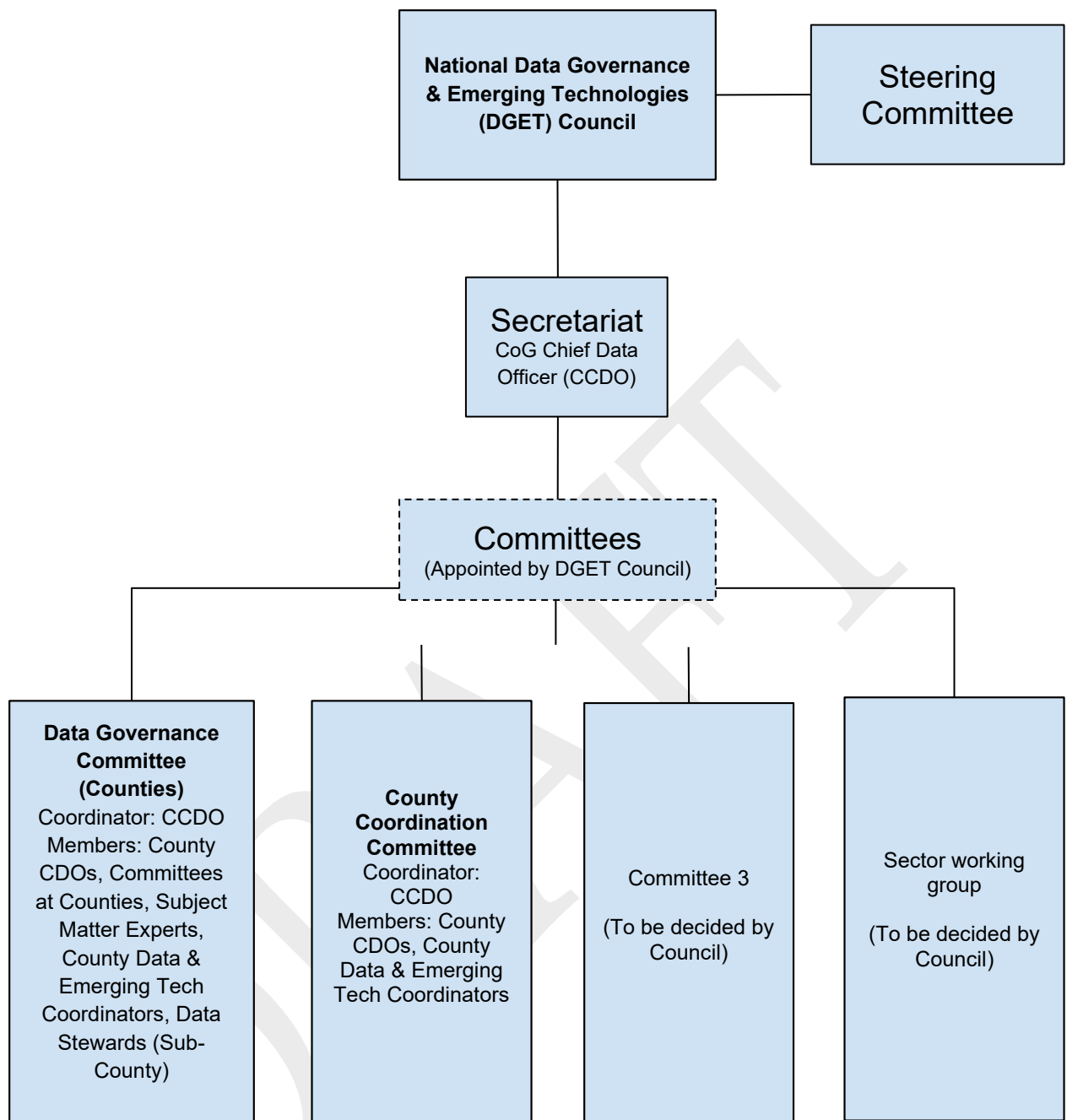


Figure 3: County Government Secretariat

Annex 3: Policy Implementation Matrix

1. Data Infrastructure and Technical Governance

Policy Objectives	Expected Outcomes	KPIs	Targets	Time-line	Estimated Cost (KES, M)	Funding Source	Responsibility	
							Lead	Support
Policy Objective 1.1: Establish a unified and interoperable national data infrastructure and harmonized national quality standards, guidelines and protocols	A national data ecosystem with rationalized infrastructure, standardized data quality, enhanced discoverability and interoperability	Percentage of cataloged datasets across MCDAs meeting the nationally defined data quality standards as verified through periodic audits	100%	Y1	330	GoK, Development Partners	DGET Council	MCDAs
			100%	Y2	330			
			100%	Y3	330			
			100%	Y4	330			
			100%	Y5	330			
		Percentage increase in documented data use instances across all authorized user categories accessing datasets through the centralized data lake and national data discovery portal, guided by an access control matrix	10%	Y1	330	GoK, Development Partners	DGET Council	MCDAs
			20%	Y2	330			
			40%	Y3	330			
			50%	Y4	330			
			60%	Y5	330			
		Percentage reduction in duplicated/siloed data centers or infrastructure instances across MDAs/counties following mandatory assessments and rationalization efforts	10%	Y1	330	GoK, Development Partners	DGET Council	MCDAs
			20%	Y2	330			
			50%	Y3	330			
			50%	Y4	330			
			60%	Y5	330			
	A centralized national catalog, and secure cross-institutional data	Percentage of national datasets discoverable and accessible via the centralized national data catalog, with documented access	10%	Y1	330	GoK, Development Partners	DGET Council	MCDAs
			20%	Y2	330			
			50%	Y3	330			
			50%	Y4	330			

	sharing enabling evidence-based decision-making and efficient service delivery	protocols, and percentage of authorized users/government transactions routed through the portal/official platforms	60%	Y5	330			
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2. Institutional Coordination and Governance Architecture

Policy Objectives	Expected Outcomes	KPIs	Targets	Time -line	Estimated Cost (KES, M)	Funding Source	Responsibility	
							Lead	Support
Policy Objective 2.1: Develop clear institutional mandates and create an effective, coordinated governance architecture	Improved coordination of all data governance efforts across national and county levels	Percentage reduction in duplicative data collection efforts	-	Y1	10	GOK Development Partners	DGET Council	-MCDAs -Non-State Actors
			10%	Y2	10			
			25%	Y3	10			
			40%	Y4	10			
			50%	Y5	10			
		Number of cross-sector data governance initiatives coordinated by the council	2	Y1		GoK Development Partners	DGET Council	-MCDAs -Non-State Actors
			3	Y2				
			5	Y3				
			7	Y4				
			10	Y5				
	Increased data governance accountability across all levels of government	Number of MCDAs with functional Data Governance structures established	20	Y1	144	GoK	MCDAs	Council
			40	Y2	288			
			60	Y3	432			
			80	Y4	576			
			100	Y5	720			
		Number functional multi-level Governance and coordination structures established	10	Y1	10	GoK	DGET Council	-MDAs and Counties - Development Partners
			20	Y2	20			
			30	Y3	30			
			40	Y4	40			
			50	Y5	50			

3. Legal and Regulatory Frameworks

Policy Objectives	Expected Outcomes	KPIs	Targets	Time-line	Estimated Cost (KES, M)	Funding Source	Responsibility	
							Lead	Support
Policy Objective 3.1: Develop a National Data Governance Law for non-personal data	A harmonised legal and regulatory framework that establishes clear ownership and accountability mechanisms, enables trusted cross-border data flows, and provides legal certainty for non-personal data use	Percentage of Non-Personal Data Governance Bill drafted, validated, submitted to Parliament and approved by the President	20% 60% 100% 100% 100%	Y1 Y2 Y3 Y4 Y5	9 22 14 10 7	GoK, Development Partners	MICDE	MCDAs, Kenya Gazette, KLRC, Both Houses of Parliament
		Number of priority non-personal data categories with published implementing regulations, guidelines, and operational procedures	- 1 3 6 8	Y1 Y2 Y3 Y4 Y5	5 9 14 12 8			
		Percentage reduction in regulatory clarification requests and legal disputes related to non-personal data ownership, use and sharing	25% 30% 40% 45% 50%	Y1 Y2 Y3 Y4 Y5	25 35 28 28 21		MICDE, DGET Council	Judiciary, Sector Regulators
Policy Objective 3.2 Implement robust data governance assessments and oversight mechanisms	Increased transparent and accountable use of surveillance and large-scale data collection systems with protection for vulnerable groups	Number of surveillance deployments or large-scale data collection with completed and submitted DGIAs	- 3 6 18 25	Y1 Y2 Y3 Y4 Y5	6 8 12 10 8	GoK, Development Partners	MICDE, DGET Council, MDACs	Sector Regulators, Civil Society, KNHCR

(complementary to data protection) for large scale data collection systems	Reduced harms through systematic risk assessments in procurement and project cycles for large scale data collection systems	Percentage reduction in reported large-scale data collection harms from established baseline	1%	Y1	15			
			1%	Y2	18			
			5%	Y3	24			
			25%	Y4	12			
			35%	Y5	6			

4. Emerging Technologies

Policy Objectives	Expected Outcomes	KPIs	Targets	Timeline	Estimated Cost (KES, M)	Funding Source	Responsibility	
							Lead	Support
Policy Objective 4.1: Develop a coherent and adaptive national data governance framework for high-risk non-personal data use for emerging technologies while safeguarding data rights, security and sovereignty	Reduced harm in high-risk non-personal data uses for emerging technologies	No. of incidents of reported harm in high-risk non-personal data uses for emerging technologies	50 200 400 600 1000	Y1 Y2 Y3 Y4 Y5	15 10 10 10 5	GoK, Development Partners	DGET Council	MCDAs Non-State Actors
		Percentage of priority sectors with DGET-aligned non-personal data governance codes for high-risk emerging technology environment	15% 30% 60% 90% 100%	Y1 Y2 Y3 Y4 Y5	25 20 15 10 5	GoK, Development Partners	DGET Council	MCDAs Non-State Actors

5. Data Culture, Human Capacity and Change Management

Policy Objectives	Expected Outcomes	KPIs	Targets	Timeline	Estimated Cost (KES, M)	Funding Source	Responsibility	
							Lead	Support
Policy Objective 5.1: Develop a sustainable culture of data literacy and continuous learning.	An empowered and engaged public on data issues	Public perception score on understanding data rights, risks, and benefits in a nationally representative score every 2 years	10%	Y1	0	GoK, Development Partners	MICD E	
			20%	Y2	5			
			30%	Y3	0			
			40%	Y4	5			
			50%	Y5	0			
		No. of training sessions of the foundational course on data carried out on in the public sector	5	Y1	0	GoK	MICD E	The National Treasury
			20	Y2	10			
			40	Y3	20			
			80	Y4	40			
			100	Y5	80			
		No. of public schools with a foundational course on data literacy	25	Y1	0	GoK	MICD E	Ministry of Education
			50	Y2	1			
			100	Y3	2			
			200	Y4	4			
			400	Y5	8			
Policy Objective 5.2: Build a sustainable and skilled data governance workforce	Increased Data Governance professionals	No. of professionally certified data governance personnel trained annually in the public sector	-	Y1	0	GoK, Development Partners	MICD E	
			400	Y2	400			
			800	Y3	400			
			1,200	Y4	400			
			1,600	Y5	400			
		No. of professionally certified data governance personnel trained annually in the private sector	-	Y1	0	Private Sector	Private sector	MICDE
			100	Y2	100			
			200	Y3	100			
			300	Y4	100			
			400	Y5	100			

	Systemic integration of data governance capacity building across all Government levels	Percentage integration of data governance capacity building in national government	- 10% 20% 30% 40%	Y1 Y2 Y3 Y4 Y5	0 200 200 200 200	MDAs	MICD E	
		Percentage integration of data governance capacity building in county governments	0% 5% 10% 15% 20%	Y1 Y2 Y3 Y4 Y5	0 50 100 100 100	County Governments, Development Partners	MICD E	
Policy Objective 5.3: Build and sustain citizen trust in Government data systems through accountability and transparency	Demonstrable institutional accountability in Data Governance	No. of dashboards of key sectors that publicly report improvement of services as a result of data sharing	- 1 2 3 5	Y1 Y2 Y3 Y4 Y5	0 5 10 15 25	Sector ministries	Relevant Ministries	The National Treasury
Policy Objective 5.4: Implement comprehensive change management to transition Government to collaborative and data-driven decision-making practices	Increased level of embeddedness of data culture in government operations	Percentage of public sector positions where performance contracts include and are assessed against specific and verifiable data-driven practices	- 2% 5% 10% 20%	Y1 Y2 Y3 Y4 Y5	0 0 0 0 0 (part of operational PC budgets)	MDAs	Relevant MDAs	Ministry of Public Service

6. Data Sharing, Exchange and Value Creation

Policy Objectives	Expected Outcomes	KPIs	Targets	Time -line	Estimated Cost (KES, million)	Funding Source	Responsibility	
							Lead	Support
Policy Objective 6.1: Govern cross-border and high-value non-personal data exchanges	Increased value of cross-border non-personal data flows.	Percentage of compliant cross-border non-personal data-sharing agreements executed	10%	Y1	45	GoK, Development Partners	DGET Council	MICDE, MFA, Attorney General, Sector Regulators, ODPC,
			30%	Y2	30			
			60%	Y3	25			
			80%	Y4	20			
			100%	Y5	15			
		Percentage of economic value generated from cross-border non-personal data flows	10%	Y1	50	GoK- National Treasury	DGET Council	National Treasury KNBS, CBK, CMA, KRA
			30%	Y2	35			
			60%	Y3	30			
			80%	Y4	25			
			100%	Y5	20			
	Strengthened data sovereignty in cross-border non-personal data exchanges	No. of cross-border non-personal data exchanges operating under approved governance and compliance protocols	2 [Pilot]	Y1	80	GoK, CA	DGET Council	ICT Authority, Communications Authority, NC4, ODPC
			5	Y2	60			
			10	Y3	50			
			15	Y4	40			
			20	Y5	35			
		Percentage of reported incidences of non-personal data governance disputes or breaches in cross-border data transactions	10%	Y1	40	GoK	DGET Council	NC4, Attorney General, Judiciary
			30%	Y2	28			
			60%	Y3	25			
			80%	Y4	20			
			100%	Y5	17			

Policy Objective 6.2: Establish a coherent national framework for non-personal data valuation, structured data exchange, and ethical data monetization-recognizing data as an economic asset while protecting rights and public interest.	Operational framework that standardizes non-personal data valuation, exchange and monetization models across all data custodians	No. of government agencies that have adopted standardized data valuation methodologies for their non-personal data assets	0 2 5 8 10	Y1 Y2 Y3 Y4 Y5	60 45 40 35 30	National Treasury, Development Partners	DGET Council	National Treasury, KNBS, CBK, CMA, CAK
		No. of commercial non-personal data transactions (subscription, per-use, data-as-a-service) operating under national monetization models	100 200 500 800 1000	Y1 Y2 Y3 Y4 Y5	35 25 22 20 18	Public-Private Partnership (PPP)	DGET Council	CBK, CMA, CAK, ICT Authority, Private Sector Associations
	Operational national non-personal data marketplace with transparent licensing, ethical safeguards and regulatory oversight	No. of registered non-personal data intermediaries, brokers, and marketplace operators	10 20 30 40 50	Y1 Y2 Y3 Y4 Y5	55 40 35 30 25	GoK, Registration fees, Regulatory Levies,	DGET Council	CAK, CBK, Registrar of Companies, ICT Authority
		No. of non-personal anonymised and aggregated datasets transacted through the national non-personal data marketplace (measured in datasets/year)	100 200 500 800 1000	Y1 Y2 Y3 Y4 Y5	120 90 75 60 50	GoK, Marketplace Transaction Fees, Revenue Sharing Models,	DGET Council	MDAs, KNBS, ICT Authority, Private Sector Data Brokers
	Increased public interest non-personal data shared	No. of high-value non-personal datasets proactively released and shared for public interest purposes with documented public value or impact.	100 200 500 800 1000	Y1 Y2 Y3 Y4 Y5	120 90 75 60 50	GoK, Open Government Partnership Grants, Development Partners	DGET Council	MDAs, Counties, KNBS, Civil Society

Annex 4: Policy M&E Matrix

1. Data Infrastructure and Technical Governance

Policy Objectives	Expected Outcomes	KPIs	Baseline	Targets		Sources of Data	Frequency
				Mid-term	End-term		
Policy Objective 1.1: Establish a unified and interoperable national data infrastructure and harmonized national quality standards, guidelines and protocols	A unified national data ecosystem with rationalized infrastructure, standardized data quality, enhanced discoverability and interoperability	Percentage of cataloged datasets across MCDAs meeting the nationally defined data quality standards as verified through periodic audits	-	100%	100%	Data Governance Office	Quarterly
		Percentage increase in documented data use instances across all authorized user categories accessing datasets through the centralized data lake and national data discovery portal, guided by an access control matrix	-	40%	60%	Data Governance Office	Quarterly
		Percentage reduction in duplicated/siloed data centers or infrastructure instances across MDAs/counties following mandatory assessments and rationalization efforts	-	50%	60%	Data Governance Office	Quarterly
	A centralized national catalog, and secure cross-institutional data sharing enabling evidence-based	Percentage of national datasets discoverable and accessible via the centralized national data catalog, with documented access protocols, and percentage of authorized	-	50%	60%	Data Governance Office	Quarterly

	decision-making and efficient service delivery	users/government transactions routed through the portal/official platforms					
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2. Institutional Coordination and Governance Architecture

Policy Objectives	Expected Outcomes	KPIs	Baseline	Targets		Sources of Data	Frequency
				Mid-term	End-term		
Policy Objective 2.1: Develop clear institutional mandates and create an effective, coordinated governance architecture.	Improved coordination of all data governance efforts across national and county levels	Percentage reduction in duplicative data collection efforts	-	25%	50%	Data Governance Office KNBS Counties MCDAs	Bi-annually
		Number of cross-sector data governance initiatives coordinated by the council	-	5	10	Data Governance Office	Bi-annually
	Increased data governance accountability across all levels of government	Number of MCDAs with functional Data Governance Committees established	-	60	100	MCDAs Data Governance Office	Monthly
		Number functional multi-level Governance and coordination structures established	-	30	50	MCDAs Data Governance Office	Quarterly

3. Legal and Regulatory Frameworks

Policy Objectives	Expected Outcomes	KPIs	Baseline	Targets		Sources of Data	Frequency
				Mid-term	End-term		
Policy Objective 3.1 Develop a comprehensive National Data Governance Law for non-personal data	A harmonised legal and regulatory framework that establishes clear ownership and accountability mechanisms, enables trusted cross-border data flows, and provides legal certainty for non-personal data use	Percentage of Non-Personal Data Governance Bill drafted, validated, submitted to Parliament and approved by the President	-	100%	100%	The Kenya Gazette, Kenya Law Reform Commission, MICDE	Annually
		Number of priority non-personal data categories with published implementing regulations, guidelines, and operational procedures	-	3	8	The Kenya Gazette, MDACs, MICDE	Annually
		Percentage reduction in regulatory clarification requests and legal disputes related to non-personal data ownership, use and sharing	-	40%	50%	NDGET, Judiciary, Sector Regulators	Annually
Policy Objective 3.2 Implement robust data governance assessments and oversight mechanisms (complementary to data protection) for	Increased transparent and accountable use of surveillance and large-scale data collection systems with protection for vulnerable groups.	Number of surveillance deployments or large-scale data collection with completed and submitted DGIAs	-	6	25	NDGET, MDACs, Civil Society	Annually
	Reduced harms through systematic risk assessments	Percentage reduction in reported large-scale data collection harms from	-	5%	35%	NDGET, MICDE, Sector Regulators	Annually

large scale data collection systems.	in procurement and project cycles for large scale data collection systems.	established baseline					
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4. Emerging Technologies

Policy Objectives	Expected Outcomes	KPIs	Baseline	Targets		Sources of Data	Frequency
				Mid-term	End-term		
Policy Objective 4.1: Develop a coherent and adaptive national data governance framework for high-risk non-personal data use for emerging technologies while safeguarding data rights, security, sovereignty, and public interest through proactive risk assessment and adaptive regulation.	Reduced harm in high-risk non-personal data uses for emerging technologies	No. of incidents of reported harm in high-risk non-personal data uses for emerging technologies	-	400	1000	DGET (data marketplace dashboards)	Real time reporting
		Percentage of priority sectors with DGET-aligned non-personal data governance codes for high-risk emerging technology environment	-	60%	100%	Sector-Specific Dashboards	Monthly

5. Data Culture, Human Capacity and Change Management

Policy Objectives	Expected Outcomes	KPIs	Baseline	Targets		Sources of Data	Frequency
				Mid-term	End-term		
Policy Objective 5.1: Establish a sustainable culture of data literacy and continuous learning	An empowered and engaged public on data issues	Public perception score on understanding data rights, risks, and benefits in a nationally representative score every 2 years	-	30%	50%	Survey	Every two years
		No. of training sessions of the foundational course on data carried out on in the public sector	-	40	100	Kenya School of Government	Quarterly
		No. of public schools with a foundational training on data literacy	-	100	400	Ministry of Education	Quarterly
Policy Objective 5.2: Build a sustainable and skilled data governance workforce	Increased Data Governance professionals	No. of professionally certified data governance personnel trained annually in the public sector	-	800	1,600	Public Service Commission	Quarterly
		No. of professionally certified data governance personnel trained annually in the private sector	-	200	400	Data Management Association (DAMA), Kenya Chapter	Quarterly
	Systemic integration of data governance capacity building	Percentage integration of data governance capacity building in national government	-	20%	40%	Public Service Commission	Quarterly

	across all Government levels	Percentage integration of data governance capacity building in county governments	-	10%	20%	Council of Governors (CoG)	Quarterly
Policy Objective 5.3: Build and sustain citizen trust in Government data systems through accountability and transparency	Demonstrable institutional accountability in Data Governance	No. of dashboards of key sectors that publicly report improvement of services as a result of data sharing	-	2	5	Data Governance Office	Quarterly
Policy Objective 5.4: Implement comprehensive change management to transition Government to collaborative and data-driven decision-making practices	Increased level of embeddedness of data culture in government operations	Percentage of public sector institutions whose performance contracts include and are assessed against specific and verifiable data-driven practices	-	5%	20%	Public Service Performance Management Unit, Ministry of Public Service	Quarterly

6. Data Sharing, Exchange and Value Creation

Policy Objectives	Expected Outcomes	KPIs	Baseline	Targets		Sources of Data	Frequency
				Mid-term	End-term		
Policy Objective 6.1: Govern cross-border and high-value non-personal data exchanges to manage economic value, sovereignty, and complex multi-party data flows.	Increased value of cross-border non-personal data flows for the parties involved.	Percentage of compliant cross-border non-personal data-sharing agreements executed under the new policy framework.	-	60%	100%	DGET Council	Quarterly
		Percentage of economic value generated from cross-border non-personal data flows	-	60%	100%	DGET Council and National Treasury	Quarterly
	Strengthened data sovereignty in cross-border non-personal data exchanges	No. of cross-border non-personal data exchanges operating under approved governance and compliance protocols	-	10	20	DGET Council	Quarterly
		Percentage of reported incidences of non-personal data governance disputes or breaches in cross-border data transactions	-	60%	100%	DGET Council	Quarterly

Policy Objective 6.2: Establish a coherent national framework for non-personal data valuation, structured data exchange, and ethical data monetization-recognizing data as an economic asset while protecting rights and public interest.	Operational framework that standardizes non-personal data valuation, exchange and monetization models across all data custodians	No. of government agencies that have adopted standardized data valuation methodologies for their non-personal data assets	-	5	10	DGET Council and National Treasury	Quarterly
		No. of commercial non-personal data transactions (subscription, per-use, data-as-a-service) operating under national monetization models	-	500	1000	MDAs and County Government	Quarterly
	Operational national non-personal data marketplace with transparent licensing, ethical safeguards and regulatory oversight	No. of registered non-personal data intermediaries, brokers, and marketplace operators	-	30	50	DGET Council and National Treasury	Quarterly
		No. of non-personal anonymised and aggregated datasets transacted through the national non-personal data marketplace (measured in datasets/year)	-	500	1000	MDAs and County Government	Quarterly
	Increased public interest non-personal data shared	Number of high-value non-personal datasets proactively released and shared for public interest purposes with documented public value or impact.	-	500	1000	MDAs and County Government	Quarterly

Annex 5: Stakeholder Mapping

Stakeholder Group	Example Entities	Datasets collect, generate or hold	Nature of Interest	Interest Rating	Nature of Influence	Influence Rating
Primary Policy Makers	Office of the President, The National Assembly, MoICDE, ICTA, National Treasury	National policy data, budget data, legislative records	Policy implementation, national digital strategy, budget allocation, legal framework development	High	Legislative authority, budget control, policy direction	High
Primary Regulators	Office of the Data Protection Commissioner, Communications Authority, Central Bank of Kenya	Regulatory compliance data, licensing data, financial sector data	Regulatory compliance, direct mandate over policy implementation and coordination	High	Enforcement powers, regulatory oversight	High
Government Data mCustodians	KNBS, Ministry of Health, Ministry of Education, Ministry of Agriculture, Kenya Revenue Authority, Ministry of Defense, Ministry of Interior/NIS, NC4	Statistical data, health records, education data (NEMIS), agricultural data, tax data, security data, critical infrastructure data	Data quality standards, Data access and sharing, data sharing and interoperability, security protocols, sectoral data governance, compliance requirements, operational efficiency	High	Data ownership, operational control	High
Sub-National Government	Council of Governors, Nairobi County, Kiambu County, Kajiado County, Muranga County, Makueni County	County service delivery data, devolved function data, local government records	Service delivery, citizen data protection, devolved governance, capacity building, implementation support	High	Local implementation, service delivery	Low
Private Sector Technology Providers	Safaricom, Airtel, Google, Microsoft, Technology-enabled SMEs, Amazon, Facebook, Oracle	Telecommunications data, cloud services data, platform user data, technology service data	Innovation enablement, competitive advantage, regulatory clarity, cross-border data flows, AI governance, business growth	High	Technology infrastructure, market influence	High
Private Sector Financial Services Providers	Kenya Bankers Association, Central Bank of Kenya, Mastercard	Banking data, payment systems data, credit data, financial transaction data	Financial data security, customer privacy, regulatory compliance, fintech innovation, payment systems governance	High	Financial system control, compliance enforcement	High
Industry Associations	KEPSA, TESPOK, Kenya Association of Manufacturers, ICPAK, AmCham ISACA	Industry sector data, membership data, business intelligence	Business-friendly regulations, sector representation, compliance cost management, competitive market conditions	High	Industry advocacy, collective voice	Medium

Stakeholder Group	Example Entities	Datasets collect, generate or hold	Nature of Interest	Interest Rating	Nature of Influence	Influence Rating
Civil Society & Rights Groups	Law Society of Kenya, KICTANet, Data Privacy and Governance Society of Kenya, Media Council of Kenya	Advocacy data, case records, media data, rights documentation	Data rights protection, transparency, accountability, digital rights advocacy, privacy safeguards, access to information	High	Public advocacy, legal challenges	Medium
Academic & Research	Universities (Nairobi, JKUAT, DeKUT, Strathmore, USIU), Maseno AI Center, KIPPRA, Commission for University Education	Research data, student data, academic records, policy research data	Research data access, academic freedom, innovation support, capacity building, policy research, student data protection	High	Research evidence, expertise	Low
International Partners	GIZ, Team Europe, IDRC, GPSDD, OGP, Embassies and foreign missions	Development project data, best practices data, funding data	Technical cooperation, best practices sharing, funding alignment, regional harmonization, development outcomes	High	Funding, technical assistance	Low
Specialized Government Entities	Judiciary, Kenya National Archives, Business Registration Services, Kenya Space Agency, Konza Technopolis, EACC	Court records, archival data, business registration data, geospatial data, technology hub data, anti-corruption data	Legal interpretation, records management, business data, geospatial data governance, technology hub development	High	Judicial authority, specialized functions	Low
Research & Advocacy Organizations	Polpolicy, Local Development Research Institute, CIPIT, Tegemeo	Policy research data, evidence-based research, African data governance perspectives	Policy research, evidence generation, advocacy, capacity building, African perspectives on data governance	High	Research influence, evidence-based advocacy	Medium
Electoral and Political Institutions	IEBC, Office of Registrar of Political Parties, Political party clerks	Voter registration data, electoral data, political party data	Electoral integrity, voter data protection, democratic processes, political transparency	High	Electoral process control, democratic legitimacy	High
Additional Sectoral Regulators	Insurance Regulatory Authority (IRA), Public Procurement Regulatory Authority (PPRA), Competition Authority of Kenya (CAK), Kenya Bureau of Standards (KEBS), SACCO Societies Regulatory Authority (SASRA), Retirement Benefits Authority (RBA), Private Security Regulatory	Insurance data, procurement data, competition data, standards data, SACCO data, pension data, private security data, capital markets data	Sector-specific compliance, regulatory oversight, consumer protection, market integrity, data standards for respective sectors	High	Regulatory enforcement, sector oversight	High

Stakeholder Group	Example Entities	Datasets collect, generate or hold	Nature of Interest	Interest Rating	Nature of Influence	Influence Rating
	Authority, Capital Markets Authority (CMA)					
Transport and Aviation Sector	Ministry of Transport, KENHA, Kenya Civil Aviation Authority (KCAA), Kenya Airports Authority (KAA)	Transport infrastructure data, aviation data, passenger data, logistics data, road network data	Transport safety, infrastructure planning, passenger data security, logistics efficiency	High	Infrastructure control, safety regulation	Medium
Environment, Climate and Natural Resources	Ministry of Environment, Climate Change and Forestry, Kenya Forest Service (KFS), Kenya Forestry Research Institute (KEFRI), Kenya Meteorological Department (MET), National Drought Management Authority (NDMA), Water Resources Authority, Remote Sensing Directorate, Blue Economy sector, Extractive industries	Environmental data, forest data, climate data, water resources data, meteorological data, remote sensing data, marine data, mining data	Environmental protection, climate action, natural resource management, sustainable development, data for climate adaptation	High	Environmental policy, resource allocation	Medium
Utilities and Critical Infrastructure	Kenya Power, National Information Technology Authority (NITA), KNET	Energy consumption data, power distribution data, government IT infrastructure data, network data	Reliable service delivery, infrastructure security, digital government services, operational data governance	High	Critical infrastructure control, service delivery	High
Identity and Registration Services	National Registration Bureau, Integrated Population Registration System (IPRS), Immigration Services, eCitizen platform, Marriages Registry, SHA (Social Health Authority), National Hospital Insurance Fund	Identity data, biometric data, immigration data, civil registration data, government service transaction data, health insurance data	Citizen identification, service delivery, data accuracy, privacy protection, secure registration systems	High	Identity verification, service access control	High
Agricultural Services and Boards	National Cereals and Produce Board (NCPB)	Agricultural commodity data, farmer data, grain storage data, food security data	Food security, agricultural market data, farmer support, commodity management	High	Agricultural commodity management	Low

Stakeholder Group	Example Entities	Datasets collect, generate or hold	Nature of Interest	Interest Rating	Nature of Influence	Influence Rating
Quality Assurance and Research Coordination	National Commission for Science, Technology and Innovation (NACOSTI), Kenya National Examination Council (KECOBO)	Research data, scientific data, examination data, quality assurance data	Research standards, quality assurance, data integrity in research and education	High	Research approval, standards enforcement	Medium
Consumer Protection and Disability Rights	Consumer Federation of Kenya, Organizations representing Persons with Disabilities (PWDs), Sign Language Associations	Consumer complaints data, disability data, accessibility data	Consumer rights, inclusive policy design, accessibility standards, data protection for vulnerable groups	High	Advocacy for consumer and disability rights	Medium
Faith-Based and Humanitarian Organizations	National Council of Churches of Kenya (NCCCK), Inter-Religious Council of Kenya (IRCK), Supreme Council of Kenyan Muslims (SUPKEM), Hindu Council of Kenya, Red Cross	Humanitarian data, community data, relief data, religious community data	Community trust, humanitarian data governance, ethical data use, social services	Low	Community influence, moral authority	High
Labour Organizations	Labour unions, Central Organization of Trade Unions (COTU)	Worker data, employment data, union membership data	Worker rights, data protection in employment, workplace data governance	High	Workforce representation, collective bargaining	Medium
Traditional and Cultural Custodians	Council of Elders, heritage custodians, grassroots organizations	Cultural data, traditional knowledge, community heritage data	Protection of traditional knowledge, community data sovereignty, cultural preservation	High	Community gatekeeping, local trust	Medium
Professional Services Firms	Big Four (Deloitte, KPMG, EY, PwC), consulting firms	Client data, audit data, business advisory data, professional services data	Business advisory on compliance, data governance frameworks, professional standards	High	Advisory influence, best practices	Medium
Credit and Market Information Services	Credit Reference Bureaus (TransUnion, Metropol, CreditInfo), Market research firms (Infotrack, Ipsos)	Credit history data, consumer credit data, market research data, survey data	Credit risk management, market intelligence, data accuracy, consumer credit rights	High	Credit scoring influence, market insights	High
Cooperative and Community Organizations	SACCOs, Cooperatives, Community-Based Organizations (CBOs)	Member data, cooperative financial data, community development data	Member data protection, cooperative governance, community data rights	High	Grassroots mobilization, community representation	Low

Stakeholder Group	Example Entities	Datasets collect, generate or hold	Nature of Interest	Interest Rating	Nature of Influence	Influence Rating
Land Administration	Ministry of Lands, National Land Management Information System, Survey of Kenya	Land ownership data, cadastral data, land transaction data, survey data	Land rights, property data accuracy, land tenure security, spatial data governance	High	Land administration control, property rights	High
National Social Security	National Social Security Fund (NSSF)	Employee contribution data, pension data, social security data	Social protection, secure pension data, beneficiary data protection	High	Social security administration	Medium
Retail and Trade	Retail Trade Associations of Kenya, large retail chains (e.g., Carrefour)	Customer data, sales data, retail transaction data	Business operations, customer privacy, competitive advantage	Medium	Market influence, consumer data handling	Medium
Business Process Outsourcing	BPO companies	Client data, call center data, outsourced service data	Data protection standards, client confidentiality, competitive positioning	High	Service delivery, data processing	Medium
Property Management	Property management companies, real estate firms	Tenant data, property data, rental transaction data	Property data governance, tenant privacy, real estate market data	Medium	Property sector operations	Low
Data Citizens/General Public	Individual citizens, data subjects, consumers, general public	Personal data, consumer-generated data, citizen records, user-generated content	Personal data protection, privacy rights, data access rights, transparency, consent mechanisms, data portability	Medium	Collective voice through CSOs, voting power, public opinion, consumer choices	Medium

List of participants in primary data collection

- Lake Hub, Kisumu County (Lake and Western Kenya regions, focusing on community, activists, and businesspersons from Kisumu and three other counties).
- EldoHub, Eldoret (Uasin Gishu County), EldoHub Region (involving government officials, academia, industry, and community members from Uasin Gishu, Nandi, Elgeyo Marakwet, and Trans Nzoia counties).
- SwahiliPot Hub, Mombasa County (Coastal region, primarily CSOs, innovators, students, and county ICT representatives from Mombasa country and three other counties).